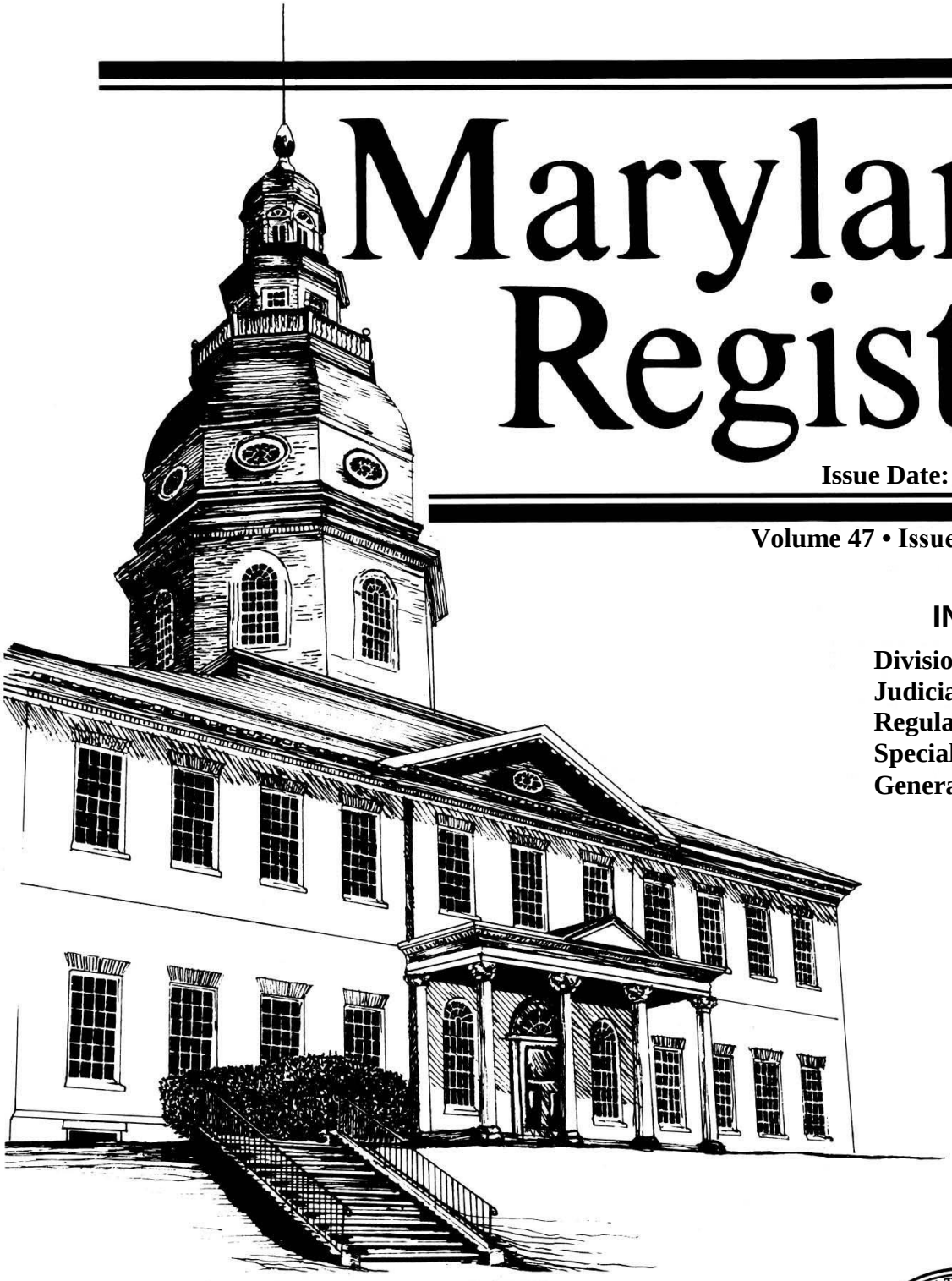
Maryland Register

Issue Date: January 3, 2020

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Pursuant to State Government Article, §7-206, Annotated Code of Maryland, this issue contains all previously unpublished documents required to be published, and filed on or before December 16, 2019, 5 p.m.

Pursuant to State Government Article, §7-206, Annotated Code of Maryland, I hereby certify that this issue contains all documents required to be codified as of December 16, 2019.

Gail S. Klakring
Administrator, Division of State Documents
Office of the Secretary of State

Information About the Maryland Register and COMAR

MARYLAND REGISTER

The Maryland Register is an official State publication published every other week throughout the year. A cumulative index is published quarterly.

The Maryland Register is the temporary supplement to the Code of Maryland Regulations. Any change to the text of regulations published in COMAR, whether by adoption, amendment, repeal, or emergency action, must first be published in the Register.

The following information is also published regularly in the Register:

- Governor's Executive Orders
- Attorney General's Opinions in full text
- Open Meetings Compliance Board Opinions in full text
- State Ethics Commission Opinions in full text
- Court Rules
- District Court Administrative Memoranda
- Courts of Appeal Hearing Calendars
- Agency Hearing and Meeting Notices
- Synopses of Bills Introduced and Enacted by the General Assembly
- Other documents considered to be in the public interest

CITATION TO THE MARYLAND REGISTER

The Maryland Register is cited by volume, issue, page number, and date. Example:

• 19:8 Md. R. 815—817 (April 17, 1992) refers to Volume 19, Issue 8, pages 815—817 of the Maryland Register issued on April 17, 1992.

CODE OF MARYLAND REGULATIONS (COMAR)

COMAR is the official compilation of all regulations issued by agencies of the State of Maryland. The Maryland Register is COMAR's temporary supplement, printing all changes to regulations as soon as they occur. At least once annually, the changes to regulations printed in the Maryland Register are incorporated into COMAR by means of permanent supplements.

CITATION TO COMAR REGULATIONS

COMAR regulations are cited by title number, subtitle number, chapter number, and regulation number. Example: COMAR 10.08.01.03 refers to Title 10, Subtitle 08, Chapter 01, Regulation 03.

DOCUMENTS INCORPORATED BY REFERENCE

Incorporation by reference is a legal device by which a document is made part of COMAR simply by referring to it. While the text of an incorporated document does not appear in COMAR, the provisions of the incorporated document are as fully enforceable as any other COMAR regulation. Each regulation that proposes to incorporate a document is identified in the Maryland Register by an Editor's Note. The Cumulative Table of COMAR Regulations Adopted, Amended or Repealed, found online, also identifies each regulation incorporating a document. Documents incorporated by reference are available for inspection in various depository libraries located throughout the State and at the Division of State Documents. These depositories are listed in the first issue of the Maryland Register published each year. For further information, call 410-974-2486.

HOW TO RESEARCH REGULATIONS

An Administrative History at the end of every COMAR chapter gives information about past changes to regulations. To determine if there have been any subsequent changes, check the ''Cumulative Table of COMAR Regulations Adopted, Amended, or Repealed'' which is found online at http://www.dsd.state.md.us/PDF/CumulativeTable.pdf. This table lists the regulations in numerical order, by their COMAR number, followed by the citation to the Maryland Register in which the change occurred. The Maryland Register serves as a temporary supplement to COMAR, and the two publications must always be used together. A Research Guide for Maryland Regulations is available. For further information, call 410-260-3876.

SUBSCRIPTION INFORMATION

For subscription forms for the Maryland Register and COMAR, see the back pages of the Maryland Register. Single issues of the Maryland Register are $15.00 per issue.

CITIZEN PARTICIPATION IN THE REGULATION-MAKING PROCESS

Maryland citizens and other interested persons may participate in the process by which administrative regulations are adopted, amended, or repealed, and may also initiate the process by which the validity and applicability of regulations is determined. Listed below are some of the ways in which citizens may participate (references are to State Government Article (SG), Annotated Code of Maryland):

- By submitting data or views on proposed regulations either orally or in writing, to the proposing agency (see ''Opportunity for Public Comment'' at the beginning of all regulations appearing in the Proposed Action on Regulations section of the Maryland Register). (See SG, §10-112)
- By petitioning an agency to adopt, amend, or repeal regulations. The agency must respond to the petition. (See SG §10-123)
- By petitioning an agency to issue a declaratory ruling with respect to how any regulation, order, or statute enforced by the agency applies. (SG, Title 10, Subtitle 3)
- By petitioning the circuit court for a declaratory judgment on the validity of a regulation when it appears that the regulation interferes with or impairs the legal rights or privileges of the petitioner. (SG, §10-125)
- By inspecting a certified copy of any document filed with the Division of State Documents for publication in the Maryland Register. (See SG, §7-213)

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Lawrence J. Hogan, Jr., Governor; **John C. Wobensmith**, Secretary of State; **Gail S. Klakring**, Administrator; **Mary D. MacDonald**, Senior Editor, Maryland Register and COMAR; **Elizabeth Ramsey**, Editor, COMAR Online, and Subscription Manager; **Tami Cathell**, Help Desk, COMAR and Maryland Register Online.

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Illustrations by Carolyn Anderson, Dept. of General Services

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The Code of Maryland Regulations is available at www.dsd.state.md.us as a free service of the Office of the Secretary of State, Division of State Documents. The full text of regulations is available and searchable. Note, however, that the printed COMAR continues to be the only official and enforceable version of COMAR.

The Maryland Register is also available at www.dsd.state.md.us.

For additional information, visit www.dsd.state.md.us, Division of State Documents, or call us at (410) 974-2486 or 1 (800) 633-9657.

Availability of Monthly List of Maryland Documents

The Maryland Department of Legislative Services receives copies of all publications issued by State officers and agencies. The Department prepares and distributes, for a fee, a list of these publications under the title ''Maryland Documents''. This list is published monthly, and contains bibliographic information concerning regular and special reports, bulletins, serials, periodicals, catalogues, and a variety of other State publications. ''Maryland Documents'' also includes local publications.

Anyone wishing to receive ''Maryland Documents'' should write to: Legislative Sales, Maryland Department of Legislative Services, 90 State Circle, Annapolis, MD 21401.

CLOSING DATES AND ISSUE DATES THROUGH JULY 2020

Issue Date	Emergency and Proposed Regulations 5 p.m.*	Notices, etc. 10:30 a.m.	Final Regulations 10:30 a.m.
January 17	December 30	January 6	January 8
January 31	January 13	January 17**	January 22
February 14	January 27	February 3	February 5
February 28	February 10	February 14**	February 19
March 13	February 24	March 2	March 4
March 27	March 9	March 16	March 18
April 10	March 23	March 30	April 1
April 24	April 6	April 13	April 15
May 8	April 20	April 27	April 29
May 22	May 4	May 11	May 13
June 5	May 18	May 22**	May 27
June 19	June 1	June 8	June 10
July 6***	June 15	June 22	June 24
July 17	June 29	July 6	July 8
July 31	July 13	July 20	July 22

* Deadlines are for submissions to **DSD** for publication in the Maryland Register and do not take into account the 15-day AELR review period. Due date for documents containing 8 to 18 pages is 48 hours before the date listed; due date for documents exceeding 18 pages is 1 week before the date listed.

NOTE: ALL DOCUMENTS MUST BE SUBMITTED IN TIMES NEW ROMAN, 9-POINT, SINGLE-SPACED FORMAT. THE PAGE COUNT REFLECTS THIS FORMATTING.

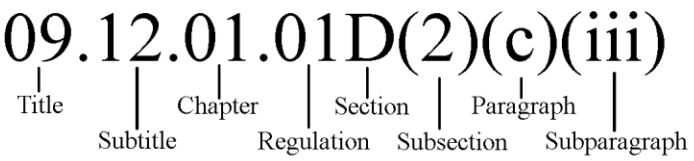
** Note closing date changes.

*** Note issue date changes.

The regular closing date for Proposals and Emergencies is Monday.

REGULATIONS CODIFICATION SYSTEM

Under the COMAR codification system, every regulation is assigned a unique four-part codification number by which it may be identified. All regulations found in COMAR are arranged by title. Each title is divided into numbered subtitles, each subtitle is divided into numbered chapters, and each chapter into numbered regulations.



A regulation may be divided into lettered sections, a section divided into numbered subsections, a subsection divided into lettered paragraphs, and a paragraph divided into numbered subparagraphs.

Cumulative Table of COMAR Regulations Adopted, Amended, or Repealed

This table, previously printed in the Maryland Register lists the regulations, by COMAR title, that have been adopted, amended, or repealed in the Maryland Register since the regulations were originally published or last supplemented in the Code of Maryland Regulations (COMAR). The table is no longer printed here but may be found on the Division of State Documents website at www.dsd.state.md.us.

Table of Pending Proposals

The table below lists proposed changes to COMAR regulations. The proposed changes are listed by their COMAR number, followed by a citation to that issue of the Maryland Register in which the proposal appeared. Errata pertaining to proposed regulations are listed, followed by "(err)". Regulations referencing a document incorporated by reference are followed by "(ibr)". None of the proposals listed in this table have been adopted. A list of adopted proposals appears in the Cumulative Table of COMAR Regulations Adopted, Amended, or Repealed.

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18.15.01.02,.06 • 46:25 Md. R. 1146 (12-6-19)

20 PUBLIC SERVICE COMMISSION

20.45.09.03 • 47:1 Md. R. 28 (1-3-20)

24 DEPARTMENT OF COMMERCE

24.05.16.01—.11 • 46:23 Md. R. 1077 (11-8-19)

26 DEPARTMENT OF THE ENVIRONMENT

Subtitles 08—12 (Part 2)

26.08.01.01 • 46:3 Md. R. 155 (2-1-19)
26.08.04.01 • 46:3 Md. R. 155 (2-1-19) (ibr)
26.08.04.09,.09-1 • 46:20 Md. R. 860 (9-27-19)
26.11.08.01,.10 • 46:20 Md. R. 862 (9-27-19)
26.11.28.01,.02 • 46:26 Md. R. 1187 (12-20-19)

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30.08.01.02 • 46:21 Md. R. 941 (10-11-19)
30.08.02.10 • 46:21 Md. R. 941 (10-11-19)
30.08.06.01—.21 • 46:21 Md. R. 941 (10-11-19)
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31.09.04.03 • 46:2 Md. R. 82 (1-18-19)
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46:26 Md. R. 1189 (12-20-19)
31.09.07.02,.03 • 47:1 Md. R. 30 (1-3-20)
31.10.06.02,.28,.30,.31 • 45:23 Md. R. 1119 (11-9-18)
31.10.21.02-1 • 46:25 Md. R. 1146 (12-6-19)
31.10.46.01—.05 • 47:1 Md. R. 30 (1-3-20)
31.10.47.01—.05 • 47:1 Md. R. 30 (1-3-20)
31.10.48.01—.05 • 47:1 Md. R. 30 (1-3-20)
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The Division of State Documents

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301-687-4734
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Frederick Douglass Library
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FAX 410-651-6269

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Montgomery County Public Library
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240-777-0140
FAX 240-777-0155

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Salisbury University
Guerrieri Academic Commons
Room AC 180A
1134 S Salisbury Blvd. (21801)
Contact: Martha Zimmerman
410-677-0110
FAX 410-543-6203

Towson
Albert S. Cook Library
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The Judiciary

COURT OF APPEALS OF MARYLAND

DISCIPLINARY PROCEEDINGS

This is to certify that by an Order of the Court of Appeals dated December 19, 2019, **CURTIS ARNOLD, JR.** (CPF # 1706200005), 1101 Juniper Street, NE, Apt. 78, Atlanta, Georgia 30309, has resigned from the further practice of law in this State and his name as an attorney at law has been stricken from the register of attorneys in this Court (Maryland Rule 19-735(e)).

This is to certify that by an Order of the Court of Appeals dated December 19, 2019, **JACQUELINE MICHELLE CALLIER** (CPF # 0912150125), 9410 Georgian Way, Owings Mills, Maryland 21117, has resigned from the further practice of law in this State and her name as an attorney at law has been stricken from the register of attorneys in this Court (Maryland Rule 19-735(e)).

This is to certify that by an Order of the Court of Appeals dated December 19, 2019, **EPHRAIM CHUKWUEMEKA UGWUONYE** (CPF # 9906240416), 11353 Columbia Pike, Apt. D2, Silver Spring, Maryland 20904, has been disbarred, effective immediately, from the further practice of law in the State, and his name as an attorney at law has been stricken from the register of attorneys in this Court (Maryland Rule 19-761).

[20-01-44]

Emergency Action on Regulations

Symbol Key

- Roman type indicates text existing before emergency status was granted.
- *Italic type* indicates new text.
- **[**Single brackets**]** indicate deleted text.

Emergency Regulations

Under State Government Article, §10-111(b), Annotated Code of Maryland, an agency may petition the Joint Committee on Administrative, Executive, and Legislative Review (AELR), asking that the usual procedures for adopting regulations be set aside because emergency conditions exist. If the Committee approves the request, the regulations are given emergency status. Emergency status means that the regulations become effective immediately, or at a later time specified by the Committee. After the Committee has granted emergency status, the regulations are published in the next available issue of the Maryland Register. The approval of emergency status may be subject to one or more conditions, including a time limit. During the time the emergency status is in effect, the agency may adopt the regulations through the usual promulgation process. If the agency chooses not to adopt the regulations, the emergency status expires when the time limit on the emergency regulations ends. When emergency status expires, the text of the regulations reverts to its original language.

Title 30
MARYLAND INSTITUTE FOR EMERGENCY MEDICAL SERVICES SYSTEMS (MIEMSS)

Subtitle 09 COMMERCIAL AMBULANCE SERVICES

30.09.07 Operational Requirements

Authority: Education Article, §§13-508 and 13-515, Annotated Code of Maryland

Notice of Emergency Action

[20-013-E]

The Joint Committee on Administrative, Executive, and Legislative Review has granted emergency status to amendments to Regulation **.02** under **COMAR 30.09.07 Operational Requirements**.

Emergency status began: January 1, 2020.

Emergency status expires: June 26, 2020.

Editor's Note: The text of this document will not be printed here because it appears as a Notice of Proposed Action on page 29 of this issue, referenced as [20-013-P].

THEODORE R. DELBRIDGE, M.D., M.P.H.
Executive Director

Final Action on Regulations

Symbol Key

- Roman type indicates text already existing at the time of the proposed action.
- *Italic type* indicates new text added at the time of proposed action.
- *Single underline, italic* indicates new text added at the time of final action.
- Single underline, roman indicates existing text added at the time of final action.
- [[Double brackets]] indicate text deleted at the time of final action.

Title 08
DEPARTMENT OF NATURAL RESOURCES

Subtitle 07 FOREST AND PARKS

08.07.06 Use of State Parks

Authority: Natural Resources Article, §5-209, Annotated Code of Maryland

Notice of Final Action

[19-218-F]

On December 20, 2019, the Secretary of Natural Resources adopted amendments to Regulation **.02** under **COMAR 08.07.06 Use of State Parks**. This action, which was proposed for adoption in 46:22 Md. R. 988 (October 25, 2019), has been adopted as proposed.

Effective Date: January 13, 2020.

JEANNIE HADDAWAY-RICCIO
Secretary of Natural Resources

Title 09
MARYLAND DEPARTMENT OF LABOR

Subtitle 35 ELEVATOR SAFETY REVIEW BOARD

09.35.02 Qualifications

Authority: Public Safety Article, §§12-823(4), 12-826, 12-827(c), *and 12-834*, Annotated Code of Maryland

Notice of Final Action

[19-121-F]

On October 25, 2019, the Elevator Safety Review Board adopted new Regulations **.04—.06** under **COMAR 09.35.02 Qualifications**. This action, which was proposed for adoption in 46:13 Md. R. 598—599 (June 21, 2019), has been adopted as proposed.

Effective Date: January 13, 2020.

ED M. HORD
Chair

Title 10
MARYLAND DEPARTMENT OF HEALTH

Subtitle 09 MEDICAL CARE PROGRAMS

10.09.37 Family Planning Program Eligibility

Authority: Health-General Article, §§2-104(b), 15-103(a), and 15-140, Annotated Code of Maryland

Notice of Final Action

[19-171-F]

On November 25, 2019, the Secretary of Health adopted amendments to Regulations **.02—.05**, the repeal of existing Regulations **.06** and **.07**, amendments to and the recodification of existing Regulations **.08**, **.09**, and **.11** to be Regulations **.06**, **.07**, and **.09**, respectively, and the recodification of existing Regulations **.10** and **.12—.15** to be Regulations **.08** and **.10—.13**, respectively, under **COMAR 10.09.37 Family Planning Program Eligibility**. This action, which was proposed for adoption in 46:19 Md. R. 819—821 (September 13, 2019), has been adopted as proposed.

Effective Date: January 13, 2020.

ROBERT R. NEALL
Secretary of Health

Title 13A
STATE BOARD OF EDUCATION

Subtitle 15 FAMILY CHILD CARE

Notice of Final Action

[19-193-F]

On December 5, 2019, the Maryland State Board of Education adopted:

(1) Amendments to Regulation **.02** under **COMAR 13A.15.01 Scope and Definitions**;

(2) Amendments to Regulations **.01—.03**, **.07**, and **.08** under **COMAR 13A.15.02 Registration Application and Maintenance**;

(3) Amendments to Regulations **.02—.05** under **COMAR 13A.15.03 Management and Administration**;

(4) Amendments to Regulation **.04** under **COMAR 13A.15.04 Operational Requirements**;

(5) Amendments to Regulations **.02**, **.05**, and **.06** under **COMAR 13A.15.05 Home Environment and Equipment**;

(6) Amendments to Regulations **.02—.05** under **COMAR 13A.15.06 Provider Requirements**;

(7) Amendments to Regulation **.04** under **COMAR 13A.15.07 Child Protection**;

(8) Amendments to Regulation **.01**, the repeal of existing Regulation **.03**, and the recodification of existing Regulations **.04** and **.05** to be Regulations **.03** and **.04** under **COMAR 13A.15.08 Child Supervision**;

(9) Amendments to Regulations **.01**, **.04**, and **.06** under **COMAR 13A.15.10 Child Safety**;

(10) Amendments to Regulations **.03**, **.04**, and **.06** under **COMAR 13A.15.11 Health**;

(11) Amendments to Regulation **.01** under **COMAR 13A.15.12 Nutrition**;

(12) Amendments to Regulations **.02** and **.05—.09** under **COMAR 13A.15.13 Inspections, Complaints, and Enforcement**;

(13) Amendments to Regulations **.01**, **.03**, and **.04** under **COMAR 13A.15.14 Administrative Hearings**; and

(14) Amendments to Regulations **.03** and **.04** under **COMAR 13A.15.15 Public Access to Licensing Records**.

This action, which was proposed for adoption in 46:21 Md. R. 900—908 (October 11, 2019), has been adopted with the nonsubstantive changes shown below.

Effective Date: January 13, 2020.

Attorney General's Certification

In accordance with State Government Article, §10-113, Annotated Code of Maryland, the Attorney General certifies that the following changes do not differ substantively from the proposed text. The nature of the changes and the basis for this conclusion are as follows:

The changes to the proposed text of the following regulations are nonsubstantive because the agency is removing the proposed text and reverting to the original existing regulatory language: (1) 13A.15.02 07A(2) and (7)(c) Denial of a Registration Application; (2) 13A.15.03.02B Admission to Care; 13A.15.03.04C(2)(a) Child Records; 13A.15.08.01D, E, F, Child Supervision; and 13A.15.13.07A(2) Revocation.

An amendment to a proposed regulation is considered substantive if it substantively affects "the rights, duties, or obligations of: (1) a member of a regulated group or profession; or (2) a member of the public." State Government Article, §10-101(h), Annotated Code of Maryland. Regulated stakeholders support MSDE's reversion to the original regulatory language in the above regulations. Regulated stakeholders and interested parties are not disadvantaged by the agency removing the proposed changes to the regulations and maintaining the existing language and requirements. The above changes maintain the benefits of the existing regulations and do not increase the burdens on regulated stakeholders that would have been imposed by the regulations as proposed. Because the changes do not change the position of any group affected by the regulation, decrease any benefits, or increase administrative burdens, they are deemed nonsubstantive. Reversion to the original language is consistent with nonsubstantive changes as discussed in 75 Md. Op. Atty. 27 (1990).

13A.15.02 Registration Application and Maintenance

Authority: *Education Article, §§9.5-301—9.5-308, 9.5-310—9.5-312, 9.5-320, and 9.5-321; General Provisions Article, §4-333;* Human Services Article, §1-202; Annotated Code of Maryland

Agency Note: Federal Statutory Reference—Americans with Disabilities Act of 1990 (42 U.S.C. §12101 et seq.); Pro-Children Act of 1994 (20 U.S.C. §6081 et seq.)*; Child Care Development Block Grant (45 CFR Parts 98 and 99 and 42 U.S.C. 9858 et seq.); Social Security Act, §418 (42 U.S.C. 618)*

.07 Denial of a Registration Application.

A. The office may deny a certificate of registration if:

(1) (proposed text unchanged)

(2) An evaluation of the application *or documents required* by the office reveals that the applicant**[[**, *regardless of intent,***]]** reported false information;

(3)—(6) (proposed text unchanged)

(7) An evaluation of the medical report or other information about the applicant, *a coprovider*, or a resident indicates that the:

(a)—(b) (proposed text unchanged)

*(c) Applicant***[[**, *regardless of intent,***]]** *submitted false or altered medical documentation for the applicant, resident, coprovider, or additional adult for consideration by the office;*

(8)—(11) (proposed text unchanged)

B.—*G*. (proposed text unchanged)

13A.15.03 Management and Administration

Authority: *Education Article, §§9.5-301—9.5-308, 9.5-310—9.5-312, 9.5-320, and 9.5-321; General Provisions Article, §4-333;* Human Services Article, §1-202; Annotated Code of Maryland

Agency Note: Federal Statutory Reference—Americans with Disabilities Act of 1990 (42 U.S.C. §12101 et seq.); Pro-Children Act of 1994 (20 U.S.C. §6081 et seq.)*; Child Care Development Block Grant (45 CFR Parts 98 and 99 and 42 U.S.C. 9858 et seq.); Social Security Act, §418 (42 U.S.C. 618)*

.02 Admission to Care.

A. (proposed text unchanged)

B. If a child is younger than 6 years old at the time of admission to the home, the provider may not allow the child to remain in care at the home if the parent does not, **[[**within 30 days after the child's admission**]]** *in accordance with COMAR 10.11.04*, submit evidence to the provider on a form supplied or approved by the office that the child has received an appropriate lead screening *or test* **[[**in accordance with applicable State or local requirements**]]**.

C.—D. (proposed text unchanged)

.04 Child Records.

A.—*B.* (proposed text unchanged)

C. During the period of a child's enrollment and for 2 years after the child's disenrollment, a provider shall maintain a file for each child that includes records of:

(1) (proposed text unchanged);

(2) The child's health assessment, immunizations, and allergies, if any, to include:

(a) *As* required by **[[**State or local law**]]** *COMAR 10.11.04, evidence that the child has received:*

(i)—(ii) (proposed text unchanged)

(b) (proposed text unchanged)

(3)—(6) (proposed text unchanged)

D. (proposed text unchanged)

13A.15.08 Child Supervision

Authority: *Education Article, §§9.5-301—9.5-308, 9.5-310—9.5-312, 9.5-320, and 9.5-321; General Provisions Article, §4-333;* Human Services Article, §1-202; Annotated Code of Maryland

Agency Note: Federal Statutory Reference—Americans with Disabilities Act of 1990 (42 U.S.C. §12101 et seq.); Pro-Children Act of 1994 (20 U.S.C. §6081 et seq.)*; Child Care Development Block Grant (45 CFR Parts 98 and 99 and 42 U.S.C. 9858 et seq.); Social Security Act, §418 (42 U.S.C. 618)*

.01 General Supervision.

A.—C. (proposed text unchanged)

[[*D. If the home has more than one residential level that is approved for child care:*

(1) The provider or substitute shall ensure that, when awake, active, and indoors at the home, each child younger than 6 years old remains on the same level of the home as the provider or substitute; and

(2) A child 6 years old or older may be on a different level of the home from the provider or substitute if:

(a) The child's status is checked by the provider or substitute often enough to ensure the child's health, safety, and welfare, but at least every 15 minutes;

(b) The provider has informed the child's parent that the child is permitted to be on a different level of the home; and

*(c) The different home level is approved by the office for child care use and meets the applicable fire code requirements.***]]**

[[*E.***]]** D. Supervision of Resting Children.

(1) If a resting or napping child is younger than 2 years old, the provider or substitute shall:

[[*(a) Remain on the same level as the child;***]]**

[[*(b)***]]** (a) Remain within sight and sound of the child; and

[[*(c)***]]** (b) Observe the child at least every 15 minutes to determine that the child is safe, breathing normally, and in no physical distress.

(2) (proposed text unchanged)

(3) If a resting or napping child is in a different room from the provider or substitute and that room can be closed off from the rest of the home by a door, screen, or similar furnishing, the provider or substitute shall ensure that the door, screen, or similar furnishing remains open so that the view into the room is unobstructed.

[[*F.***]]** E. The provider may use a video and sound monitoring system to meet the sound and sight requirement in **[[***§E(1)(b)***]]** §D(1)(a) of this regulation.

[[*G.***]]** F. (proposed text unchanged)

13A.15.13 Inspections, Complaints, and Enforcement

Authority: *Education Article, §§9.5-301—9.5-308, 9.5-310—9.5-312, 9.5-320, and 9.5-321;* Human Services Article, §1-202; *General Provisions Article, §4-333;* Annotated Code of Maryland

Agency Note: Federal Statutory Reference—Americans with Disabilities Act of 1990 (42 U.S.C. §12101 et seq.); Pro-Children Act of 1994 (20 U.S.C. §6081 et seq.)*; Child Care Development Block Grant (45 CFR Parts 98 and 99 and 42 U.S.C. 9858 et seq.); Social Security Act, §418 (42 U.S.C. 618)*

.07 Revocation.

A. The office may revoke a certificate of registration if the:

(1) (proposed text unchanged)

(2) Provider**[[**, *regardless of intent,***]]** misrepresented or offered false information on the application or on any form or report required by the office;

(3)—(14) (proposed text unchanged)

B.—C. (proposed text unchanged)

KAREN B. SALMON, Ph.D.
State Superintendent of Schools

Subtitle 16 CHILD CARE CENTERS

Notice of Final Action

[19-194-F]

On December 3, 2019, the Maryland State Board of Education adopted:

(1) Amendments to Regulations **.01** and **.02** under **COMAR 13A.16.01 Scope and Definitions**;

(2) Amendments to Regulations **.01—.04** and **.06** under **COMAR 13A.16.02 License Application and Maintenance**;

(3) Amendments to Regulations **.01—.06** and new Regulation **.09** under **COMAR 13A.16.03 Management and Administration**;

(4) Amendments to Regulations **.05**, **.12**, and **.13** under **COMAR 13A.16.05 Physical Plant and Equipment**;

(5) Amendments to Regulations **.03—.06** and **.09—.12** under **COMAR 13A.16.06 Staff Requirements**;

(6) Amendments to Regulations **.02**, **.03**, and **.06** under **COMAR 13A.16.07 Child Protection**;

(7) Amendments to Regulations **.01**, **.03**, and **.06** under **COMAR 13A.16.08 Child Supervision**;

(8) Amendments to Regulation **.04** under **COMAR 13A.16.09 Program Requirements**;

(9) Amendments to Regulations **.02** and **.05** under **COMAR 13A.16.10 Safety**;

(10) Amendments to Regulations **.02—.04** and **.06** under **COMAR 13A.16.11 Health**;

(11) Amendments to Regulation **.01** under **COMAR 13A.16.12 Nutrition**;

(12) Amendments to Regulation **.02** under **COMAR 13A.16.13 Centers for Children with Acute Illness**;

(13) Amendments to Regulation **.01** under **COMAR 13A.16.14 Adolescent Centers**;

(14) Amendments to Regulation **.03** under **COMAR 13A.16.15 Drop-In Centers**;

(15) Amendments to Regulations **.02—.04** under **COMAR 13A.16.16 Educational Programs in Nonpublic Nursery Schools**;

(16) Amendments to Regulation **.01**, new Regulation **.03**, the recodification of existing Regulation **.03** to be Regulation **.04**, and amendments to and the recodification of existing Regulations **.04—.07** to be Regulations **.05—.08** under **COMAR 13A.16.17 Inspections, Complaints, and Enforcement**;

(17) Amendments to Regulations **.01—.05** under **COMAR 13A.16.18 Administrative Hearings**; and

(18) Amendments to Regulation **.03** and **.04** under **COMAR 13A.16.19 Public Access to Licensing Records**.

This action, which was proposed for adoption in 46:21 Md. R. 909—920 (October 11, 2019), has been adopted with the nonsubstantive changes shown below.

Effective Date: January 13, 2020.

Attorney General's Certification

In accordance with State Government Article, §10-113, Annotated Code of Maryland, the Attorney General certifies that the following changes do not differ substantively from the proposed text. The nature of the changes and the basis for this conclusion are as follows:

The changes to the proposed text of the following regulations are non-substantive because the agency is removing the proposed text and reverting to the original existing regulatory language: (1) 13A.16.02.06A(2) Application and Maintenance; (2) 13A.16.03.02E Admission to Care; (3) 13A.16.03.04E Child Records; (4) 13A.16.06.13 Substitutes; and (5) 13A.16.17.07A(2) Revocation.

An amendment to a proposed regulation is considered substantive if it substantively affects "the rights, duties, or obligations of: (1) a member of a regulated group or profession; or (2) a member of the public." State Government Article, §10-101(h), Annotated Code of Maryland. Regulated stakeholders support MSDE's reversion to the original regulatory language in the above regulations. Regulated stakeholders and interested parties are not disadvantaged by the agency removing the proposed changes to the regulations and maintaining the existing language and requirements. The above changes maintain the benefits of the existing regulations and do not increase the burdens on regulated stakeholders that would have been imposed by the regulations as proposed. Because the changes do not change the position of any group affected by the regulation, decrease any benefits, or increase administrative burdens, they are deemed nonsubstantive. Reversion to the original language is consistent with nonsubstantive changes as discussed in 75 Md. Op. Atty. 27 (1990).

The additional changes to the proposed language of 13A.16.06.04A(2) Health are also nonsubstantive. This regulation

was changed to clarify that the medical evaluation form required of licensees may be signed by either the medical practitioner or the practitioner's designee and does not invalidate a medical form if someone other than the medical practitioner signs the form. Licensees are currently required to provide documentation of medical examinations. The change in language clarifies that the medical evaluation form may be completed according to the procedures followed by the practitioner's office. The change does not change the position of any group affected by the regulation, decrease any benefits, or increase administrative burdens, and as such are deemed nonsubstantive.

13A.16.02 License Application and Maintenance

Authority: *Education Article, §§9.5-401, 9.5-404—9.5-411, and 9.5-413—9.5-418; General Provisions Article, §4-333;* Human Services Article, §1-202; Annotated Code of Maryland
Agency Note: Federal Statutory Reference—Americans with Disabilities Act of 1990 (42 U.S.C. §12101 et seq.); Pro-Children Act of 1994 (20 U.S.C. §6081 et seq.)*; Child Care Development Block Grant (45 CFR Parts 98 and 99 and 42 U.S.C. 9858 et seq.); Social Security Act, §418 (42 U.S.C. 618)*

.06 Denial of License.

A. An office may deny an application for an initial license or a continuing license if:

(1) (proposed text unchanged)

(2) An evaluation of the application form, *medical documents, or any documents required* by the office reveals that the applicant**[[**, *regardless of intent*,**]]** reported false information;

(3)—(7) (proposed text unchanged)

B.—C. (proposed text unchanged)

13A.16.03 Management and Administration

Authority: *Education Article, §§9.5-401, 9.5-404—9.5-411, and 9.5-413—9.5-418; General Provisions Article, §4-333;* Human Services Article, §1-202; Annotated Code of Maryland
Agency Note: Federal Statutory Reference—Americans with Disabilities Act of 1990 (42 U.S.C. §12101 et seq.); Pro-Children Act of 1994 (20 U.S.C. §6081 et seq.)*; Child Care Development Block Grant (45 CFR Parts 98 and 99 and 42 U.S.C. 9858 et seq.); Social Security Act, §418 (42 U.S.C. 618)*

.02 Admission to Care.

A.—D. (proposed text unchanged)

E. If a child is younger than 6 years old at the time of admission, the operator may not allow the child to remain in care if the parent does not, **[[**within 30 days after the child's admission**]]** *in accordance with COMAR 10.11.04*, submit evidence to the operator on a form supplied or approved by the office that the child has received an appropriate lead screening *or test* **[[**in accordance with applicable State or local requirements**]]**.

F. (proposed text unchanged)

.04 Child Records.

A.—D. (proposed text unchanged)

E. *The operator shall maintain documentation that, as required by* **[[***State or local law***]]** *COMAR 10.11.04, each child admitted to, or continuing in, care has received:*

(1)—(2) (proposed text unchanged)

F.—K. (proposed text unchanged)

13A.16.06 Staff Requirements

Authority: *Education Article, §§9.5-401, 9.5-404—9.5-411, and 9.5-413—9.5-418; General Provisions Article, §4-333;* Human Services Article, §1-202; Annotated Code of Maryland
Agency Note: Federal Statutory Reference—Americans with Disabilities Act of 1990 (42 U.S.C. §12101 et seq.); Pro-Children Act of 1994 (20 U.S.C. §6081 et seq.)*; Child Care Development Block Grant (45 CFR Parts 98 and 99 and 42 U.S.C. 9858 et seq.); Social Security Act, §418 (42 U.S.C. 618)*

.04 Staff Health.

A. Medical Evaluation.

(1) (proposed text unchanged)

(2) The medical evaluation shall be signed by the individual who conducted the evaluation or the individual's designee and include verification that the staff member:

(a)—(b) (proposed text unchanged)

(3)—(4) (proposed text unchanged)

B. (proposed text unchanged)

.13 Substitutes.

A.—E. (proposed text unchanged)

[[*F. Approval by Office.*

(1) An individual designated as a substitute may not be used in that capacity unless the office has approved the individual.

(2) If information received by the office indicates that an individual designated as a substitute may present a risk to the health, safety, or welfare of children in care, the office may disapprove the use of that substitute.

*(3) The office shall notify the operator of its decision to approve or disapprove a substitute upon evaluation of all criminal background check information and child protective services clearances.***]]**

13A.16.17 Inspections, Complaints, and Enforcement

Authority: *Education Article, §§9.5-401, 9.5-404—9.5-411, and 9.5-413—9.5-418; General Provisions Article, §4-333;* Human Services Article, §1-202; Annotated Code of Maryland
Agency Note: Federal Statutory Reference—Americans with Disabilities Act of 1990 (42 U.S.C. §12101 et seq.); Pro-Children Act of 1994 (20 U.S.C. §6081 et seq.)*; Child Care Development Block Grant (45 CFR Parts 98 and 99 and 42 U.S.C. 9858 et seq.); Social Security Act, §418 (42 U.S.C. 618)*

***.07* Revocation.**

A. The office may revoke a license if:

(1) (proposed text unchanged)

(2) An operator**[[**, *regardless of intent*,**]]** misrepresented or offered false information on the application or on any form or report required by the office;

(3) (proposed text unchanged)

(4) The operator fails to comply with the:

(a) Prohibitions on the use of an individual as an employee, *a substitute*, or a volunteer as set forth in COMAR 13A.16.06.03A and B**[[**, *COMAR 13A.16.06.13F*,**]]** *or COMAR 13A.16.06.15B*; or

(b) (proposed text unchanged)

(5)—*(8)* (proposed text unchanged)

B.—C. (proposed text unchanged)

KAREN B. SALMON, Ph.D.
State Superintendent of Schools

Subtitle 17 CHILD CARE—LETTERS OF COMPLIANCE

Notice of Final Action

[19-191-F]

On December 3, 2019, the Maryland State Board of Education adopted:

(1) Amendments to Regulation **.02** under **COMAR 13A.17.01 Scope and Definitions**;

(2) Amendments to Regulations **.01**, **.02**, **.05**, and **.06** under **COMAR 13A.17.02 Letter of Compliance Application and Maintenance**;

(3) Amendments to Regulations **.02—.06** and adopt new Regulation **.09** under **COMAR 13A.17.03 Management and Administration**;

(4) Amendments to Regulations **.05**, **.12**, and **.13** under **COMAR 13A.17.05 Physical Plant and Equipment**;

(5) Amendments to Regulations **.02—.04** under **COMAR 13A.17.06 Staff Requirements**;

(6) Amendments to Regulations **.02**, **.03**, and **.06** under **COMAR 13A.17.07 Child Protection**;

(7) Amendments to Regulation **.06** and adopt new Regulation **.08** under **COMAR 13A.17.08 Child Supervision**;

(8) Amendments to Regulations **.01** and **.02** under **COMAR 13A.17.10 Safety**;

(9) Amendments to Regulations **.02—.04** and **.06** under **COMAR 13A.17.11 Health**;

(10) Amendments to Regulation **.01** under **COMAR 13A.17.12 Nutrition**;

(11) Amendments to Regulation **.01** under **COMAR 13A.17.13 Adolescent Facilities**;

(12) Amendments to Regulations **.02** and **.03** under **COMAR 13A.17.14 Educational Programs in Nonpublic Nursery Schools**;

(13) Amendments to Regulation **.01**, new Regulation **.03**, the recodification of existing Regulation **.03** to be Regulation **.04**, and amendments to and the recodification of existing Regulations **.04—.07** to be Regulations **.05—.08** under **COMAR 13A.17.15 Inspections, Complaints, and Enforcement**;

(14) Amendments to Regulations **.01—.05** under **COMAR 13A.17.16 Administrative Hearings**; and

(15) Amendments to Regulations **.03** and **.04** under **COMAR 13A.17.17 Public Access to Licensing Records**.

This action, which was proposed for adoption in 46:21 Md. R. 920—929 (October 11, 2019), has been adopted with the nonsubstantive changes shown below.

Effective Date: January 13, 2020.

Attorney General's Certification

In accordance with State Government Article, §10-113, Annotated Code of Maryland, the Attorney General certifies that the following changes do not differ substantively from the proposed text. The nature of the changes and the basis for this conclusion are as follows:

The changes to the proposed text of the following regulations are nonsubstantive because the agency is removing the proposed text and reverting to the original existing regulatory language: (1) 13A.16.17.07A(2) Revocation; (2) 13A.17.02.06A(2) Denial of Letter of Compliance; (3) 13A.17.03.02D Management and Administration; (4) 13A.17.03.04E Child Records; (5) 13A.17.06.05 Substitutes; and (6) 13A.17.15.07A(2) Revocation.

An amendment to a proposed regulation is considered substantive if it substantively affects "the rights, duties, or obligations of: (1) a member of a regulated group or profession; or (2) a member of the public." State Government Article, §10-101(h), Annotated Code of Maryland. Regulated stakeholders support MSDE's reversion to the original regulatory language in the above regulations. Regulated stakeholders and interested parties are not disadvantaged by the agency removing the proposed changes to the regulations and maintaining the existing language and requirements. The above changes maintain the benefits of the existing regulations and do not increase the burdens on regulated stakeholders that would have been imposed by the regulations as proposed. Because the changes do not change the position of any group affected by the regulation, decrease any benefits, or increase administrative burdens, they are deemed nonsubstantive. Reversion to the original language is consistent with nonsubstantive changes as discussed in 75 Md. Op. Atty. 27 (1990).

13A.17.02 Letter of Compliance Application and Maintenance

Authority: *Education Article, §§9.5-401, 9.5-404, 9.5-405, 9.5-409, 9.5-411, and 9.5-413—9.5-418; General Provisions Article, §4-333;* Human Services Article, §1-202; Annotated Code of Maryland

Agency Note: Federal Statutory Reference—Americans with Disabilities Act of 1990 (42 U.S.C. §12101 et seq.); Pro-Children Act of 1994 (20 U.S.C. §6081 et seq.)*; Child Care Development Block Grant (45 CFR Parts 98 and 99 and 42 U.S.C. 9858 et seq.); Social Security Act, §418 (42 U.S.C. 618)*

.06 Denial of Letter of Compliance.

A. An office may deny an application for an initial letter of compliance or a continuing letter of compliance if:

(1) (proposed text unchanged)

(2) An evaluation of the application form, *medical documents, or any documents required* by the office reveals that the applicant**[[**, *regardless of intent*,**]]** reported false information;

(3)—(7) (proposed text unchanged)

B.—C. (proposed text unchanged)

13A.17.03 Management and Administration

Authority: *Education Article, §§9.5-401, 9.5-404, 9.5-405, 9.5-409, 9.5-411, and 9.5-413—9.5-418; General Provisions Article, §4-333;* Human Services Article, §1-202; Annotated Code of Maryland

Agency Note: Federal Statutory Reference—Americans with Disabilities Act of 1990 (42 U.S.C. §12101 et seq.); Pro-Children Act of 1994 (20 U.S.C. §6081 et seq.)*; Child Care Development Block Grant (45 CFR Parts 98 and 99 and 42 U.S.C. 9858 et seq.); Social Security Act, §418 (42 U.S.C. 618)*

.02 Admission to Care.

A.—C. (proposed text unchanged)

D. If a child is younger than 6 years old at the time of admission, the operator may not allow the child to remain in care if the parent does not, **[[**within 30 days after the child's admission,**]]** *in accordance with COMAR 10.11.04,* submit evidence to the operator on a form supplied or approved by the office that the child has received an appropriate lead screening *or test* **[[**in accordance with applicable State or local requirements**]]**.

E. Temporary Admission to Care.

(1)—(4) (proposed text unchanged)

.04 Child Records.

A.—D. (proposed text unchanged)

E. *The operator shall maintain documentation that, as required by* **[[***State or local law***]]** *COMAR 10.11.04, each child admitted to, or continuing in, care has received:*

(1)—(2) (proposed text unchanged)

F.—J. (proposed text unchanged)

13A.17.06 Staff Requirements

Authority: *Education Article, §§9.5-401, 9.5-404, 9.5-405, 9.5-409, 9.5-411, and 9.5-413—9.5-418; General Provisions Article, §4-333;* Human Services Article, §1-202; Annotated Code of Maryland
Agency Note: Federal Statutory Reference—Americans with Disabilities Act of 1990 (42 U.S.C. §12101 et seq.); Pro-Children Act of 1994 (20 U.S.C. §6081 et seq.)*; Child Care Development Block Grant (45 CFR Parts 98 and 99 and 42 U.S.C. 9858 et seq.); Social Security Act, §418 (42 U.S.C. 618)*

.04 Staff Health.

A. (proposed text unchanged)

(2) The medical evaluation shall be signed by the individual who conducted the evaluation or the individual's designee and include verification that the staff member:

(a)—(b) (proposed text unchanged)

(3)—(4) (proposed text unchanged)

B. (proposed text unchanged)

.05 Substitutes.

A.—B. (proposed text unchanged)

[[*C. Approval by Office.*

(1) An individual designated as a substitute may not be used in that capacity unless the office has approved the individual.

(2) If information received by the office indicates that an individual designated as a substitute may present a risk to the health, safety, or welfare of children in care, the office may disapprove the use of that substitute.

*(3) The office shall notify the operator of its decision to approve or disapprove a substitute upon evaluation of all criminal background check information and child protective services clearances.***]]**

13A.17.15 Inspections, Complaints, and Enforcement

Authority: *Education Article, §§9.5-401, 9.5-404, 9.5-405, 9.5-409, 9.5-411, and 9.5-413—9.5-418; General Provisions Article, §4-333;* Human Services Article, §1-202; Annotated Code of Maryland
Agency Note: Federal Statutory Reference—Americans with Disabilities Act of 1990 (42 U.S.C. §12101 et seq.); Pro-Children Act of 1994 (20 U.S.C. §6081 et seq.)*; Child Care Development Block Grant (45 CFR Parts 98 and 99 and 42 U.S.C. 9858 et seq.); Social Security Act, §418 (42 U.S.C. 618)*

.07 **Revocation.**

A. The office may revoke a letter of compliance if:

(1) (proposed text unchanged)

(2) The operator**[[**, *regardless of intent,***]]** misrepresented or offered false information on the application or on any form or report required by the office;

(3) (proposed text unchanged)

(4) The operator fails to comply with the:

(a) Prohibitions on the use of an individual as an employee, *substitute,* or **[**as a**]** volunteer as set forth, respectively, in COMAR 13A.17.06.03A and B**[[**, *COMAR 13A.17.06.05C,***]]** *and COMAR 13A.17.06.07B*; or

(b) (text unchanged)

(5)—*(8)* (proposed text unchanged)

B.—C. (proposed text unchanged)

KAREN B. SALMON, Ph.D.
State Superintendent of Schools

Subtitle 18 LARGE FAMILY CHILD CARE HOMES

Notice of Final Action

[19-192-F]

On December 3, 2019, the Maryland State Board of Education adopted amendments to:

(1) Regulation **.02** under **COMAR 13A.18.01 Scope and Definitions**;

(2) Regulations **.01—.08** under **COMAR 13A.18.02 Registration Application and Maintenance**;

(3) Regulations **.02—.06** under **COMAR 13A.18.03 Management and Administration**;

(4) Regulation **.04** under **COMAR 13A.18.04 Operational Requirements**;

(5) Regulations **.05**, **.12**, and **.13** under **COMAR 13A.18.05 Home Environment and Equipment**;

(6) Regulations **.03—.08** and **.10** under **COMAR 13A.18.06 Provider and Staff Requirements**;

(7) Regulations **.02** and **.03** under **COMAR 13A.18.07 Child Protection**;

(8) Regulations **.01**, **.02**, **.06**, and **.08** under **COMAR 13A.18.08 Child Supervision**;

(9) Regulation **.04** under **COMAR 13A.18.09 Program Requirements**;

(10) Regulation **.01** under **COMAR 13A.18.10 Safety**;

(11) Regulations **.02—.04** under **COMAR 13A.18.11 Health**;

(12) Regulations **.01** and **.06** under **COMAR 13A.18.12 Nutrition**;

(13) Regulations **.02** and **.05—.09** under **COMAR 13A.18.14 Inspections, Complaints and Enforcement**;

(14) Regulations **.01**, **.03**, and **.04** under **COMAR 13A.18.15 Administrative Hearings**; and

(15) Regulations **.03** and **.04** under **COMAR 13A.18.16 Public Access to Licensing Records**.

This action, which was proposed for adoption in 46:21 Md. R. 929—940 (October 11, 2019), has been adopted with the nonsubstantive changes shown below.

Effective Date: January 13, 2020.

Attorney General's Certification

In accordance with State Government Article, §10-113, Annotated Code of Maryland, the Attorney General certifies that the following changes do not differ substantively from the proposed text. The nature of the changes and the basis for this conclusion are as follows:

The changes to the proposed text of the following regulations are nonsubstantive because the agency is removing the proposed text and reverting to the original existing regulatory language: (1) 13A.18.02.07A(2) and (7) Denial of a Registration Application; (2) 13A.18.03.02D Admission to Care; (3) 13A.18.03.04E Child Records; (4) 13A.18.06.08 Substitutes; and (5) 13A.18.14.07A(2) Revocation.

An amendment to a proposed regulation is considered substantive if it substantively affects "the rights, duties, or obligations of: (1) a member of a regulated group or profession; or (2) a member of the public." State Government Article, §10-101(h), Annotated Code of Maryland. Regulated stakeholders support MSDE's reversion to the original regulatory language in the above regulations. Regulated stakeholders and interested parties are not disadvantaged by the agency removing the proposed changes to the regulations and maintaining the existing language and requirements. The above changes maintain the benefits of the existing regulations and do not increase the burdens on regulated stakeholders that would have been imposed by the regulations as proposed. Because the changes do not

change the position of any group affected by the regulation, decrease any benefits, or increase administrative burdens, they are deemed nonsubstantive. Reversion to the original language is consistent with nonsubstantive changes as discussed in 75 Md. Op. Atty. 27 (1990).

13A.18.02 Registration Application and Maintenance

Authority: *Education Article, §§9.5-301—9.5-308, 9.5-310—9.5-312, 9.5-320, and 9.5-321; General Provisions Article, §4-333;* Human Services Article, §1-202; Annotated Code of Maryland
Agency Note: Federal Statutory Reference—Americans with Disabilities Act of 1990 (42 U.S.C. §12101 et seq.); Pro-Children Act of 1994 (20 U.S.C. §6081 et seq.)*; Child Care Development Block Grant (45 CFR Parts 98 and 99 and 42 U.S.C. 9858 et seq.); Social Security Act, §418 (42 U.S.C. 618)*

.07 Denial of a Registration Application.

A. The office may deny a certificate of registration if:

(1) (proposed text unchanged)

(2) An evaluation of the application *or any documents required* by the office reveals that the applicant**[[**, *regardless of intent,***]]** reported false information;

(3)—(6) (proposed text unchanged)

(7) An evaluation of the medical report or other information about the applicant or a resident indicates that the:

(a)—(b) (proposed text unchanged)

*(c) Applicant***[[**, *regardless of intent***]]** *submitted false or altered medical documentation for the applicant, resident, substitute, or employee for consideration by the office;*

(8)—(11) (proposed text unchanged)

B.—G. (proposed text unchanged)

13A.18.03 Management and Administration

Authority: *Education Article, §§9.5-301—9.5-308, 9.5-310—9.5-312, 9.5-320, and 9.5-321; General Provisions Article, §4-333;* Human Services Article, §1-202; Annotated Code of Maryland
Agency Note: Federal Statutory Reference—Americans with Disabilities Act of 1990 (42 U.S.C. §12101 et seq.); Pro-Children Act of 1994 (20 U.S.C. §6081 et seq.)*; Child Care Development Block Grant (45 CFR Parts 98 and 99 and 42 U.S.C. 9858 et seq.); Social Security Act, §418 (42 U.S.C. 618)*

.02 Admission to Care.

A.—C. (proposed text unchanged)

D. If a child is younger than 6 years old at the time of admission, the provider may not allow the child to remain in care if the parent does not, **[[**within 30 days after the child's admission**]]** *in accordance with COMAR 10.11.04*, submit evidence to the provider on a form supplied or approved by the Office that the child has received an appropriate lead screening *or test* **[[**in accordance with applicable State or local requirements**]]**.

E. (proposed text unchanged)

.04 Child Records.

A.—D. (proposed text unchanged)

E. *As* required by **[[**State or local law**]]** *COMAR 10.11.04, there shall be evidence that the child has received:*

(1)—(2) (proposed text unchanged)

F.—L. (proposed text unchanged)

13A.18.06 Provider and Staff Requirements

Authority: *Education Article, §§9.5-301—9.5-308, 9.5-310—9.5-312, 9.5-320, and 9.5-321; General Provisions Article, §4-333;* Human Services Article, §1-202; Annotated Code of Maryland
Agency Note: Federal Statutory Reference—Americans with Disabilities Act of 1990 (42 U.S.C. §12101 et seq.); Pro-Children Act of 1994 (20 U.S.C. §6081 et seq.)*; Child Care Development Block Grant (45 CFR Parts 98 and 99 and 42 U.S.C. 9858 et seq.); Social Security Act, §418 (42 U.S.C. 618)*

.08 Substitutes.

A.—*E.* (proposed text unchanged)

[[*F. Approval by Office.*

(1) An individual designated as a substitute may not be used in that capacity unless the office has approved the individual.

(2) If information received by the office indicates that an individual designated as a substitute may present a risk to the health, safety, or welfare of children in care, the office may disapprove the use of that substitute.

*(3) The office shall notify the provider of its decision to approve or disapprove a substitute within 30 days of the request being submitted.***]]**

13A.18.14 Inspections, Complaints, and Enforcement

Authority: *Education Article, §§9.5-301—9.5-308, 9.5-310—9.5-312, 9.5-320, and 9.5-321; General Provisions Article, §4-333;* Human Services Article, §1-202; Annotated Code of Maryland
Agency Note: Federal Statutory Reference—Americans with Disabilities Act of 1990 (42 U.S.C. §12101 et seq.); Pro-Children Act of 1994 (20 U.S.C. §6081 et seq.)*; Child Care Development Block Grant (45 CFR Parts 98 and 99 and 42 U.S.C. 9858 et seq.); Social Security Act, §418 (42 U.S.C. 618)*

.07 Revocation.

A. The office may revoke a certificate of registration if the:

(1) (proposed text unchanged)

(2) Provider**[[**, *regardless of intent,***]]** misrepresented or offered false information on the application or on any form or report required by the office;

(3)—*(14)* (proposed text unchanged)

B.—C. (proposed text unchanged)

KAREN B. SALMON, Ph.D.
State Superintendent of Schools

Title 31
MARYLAND INSURANCE ADMINISTRATION

Subtitle 06 TAXES AND FEES

31.06.04 Premium Tax — Required Filings, Payments, Penalties, and Interest

Authority: Insurance Article, §§2-109, 6-101—6-103, and 6-106—6-109, Annotated Code of Maryland

Notice of Final Action

[19-205-F]

On December 16, 2019, the Insurance Commissioner adopted amendments to Regulations **.01—.03** under **COMAR 31.06.04 Premium Tax — Required Filings, Payments, Penalties, and Interest**. This action, which was proposed for adoption in 46:22 Md. R. 1040 (October 25, 2019), has been adopted as proposed.

Effective Date: January 13, 2020.

ALFRED W. REDMER, JR.
Insurance Commissioner

Title 33
STATE BOARD OF ELECTIONS

Subtitle 02 MEETINGS AND TRAINING

33.02.04 Election Day Page Program

Authority: Election Law Article, §§2-102(b)(4) **[[***and***]],** *2-202(b), and 10-401(c), Annotated Code of Maryland*

Notice of Final Action

[19-199-F]

On December 12, 2019, the State Board of Elections adopted new Regulations **.01—.08** under a new chapter, **COMAR 33.02.04 Election Day Page Program**. This action, which was proposed for adoption in 46:21 Md. R. 948—949 (October 11, 2019), has been adopted as proposed.

Effective Date: January 13, 2020.

LINDA H. LAMONE
State Administrator of Elections

Subtitle 08 CANVASSING

33.08.05 Post Election Verification and Audit

Authority: Election Law Article, §§2-102(b)(4), 2-202(b), 9-403, 11-201, and 11-309, Annotated Code of Maryland

Notice of Final Action

[19-181-F]

On December 12, 2019, the State Board of Elections adopted amendments to Regulations **.01**, **.09**, and **.10** under **COMAR 33.08.05 Post Election Verification and Audit**. This action, which was proposed for adoption in 46:21 Md. R. 949—950 (October 11, 2019), has been adopted as proposed.

Effective Date: January 13, 2020.

LINDA H. LAMONE
State Administrator of Elections

Subtitle 11 ABSENTEE BALLOTS

Notice of Final Action

[19-198-F]

On December 12, 2019, the State Board of Elections adopted amendments to:

(1) Regulation **.01** under **COMAR 33.11.01 Definitions; General Provisions**; and

(2) Regulations **.06** and **.08** under **COMAR 33.11.03 Issuance and Return**.

This action, which was proposed for adoption in 46:21 Md. R. 951 (October 11, 2019), has been adopted as proposed.

Effective Date: January 13, 2020.

LINDA H. LAMONE
State Administrator of Elections

Proposed Action on Regulations

For information concerning citizen participation in the regulation-making process, see inside front cover.

Symbol Key

- Roman type indicates existing text of regulation.
- *Italic type* indicates proposed new text.
- [Single brackets] indicate text proposed for deletion.

Promulgation of Regulations

An agency wishing to adopt, amend, or repeal regulations must first publish in the Maryland Register a notice of proposed action, a statement of purpose, a comparison to federal standards, an estimate of economic impact, an economic impact on small businesses, a notice giving the public an opportunity to comment on the proposal, and the text of the proposed regulations. The opportunity for public comment must be held open for at least 30 days after the proposal is published in the Maryland Register.

Following publication of the proposal in the Maryland Register, 45 days must pass before the agency may take final action on the proposal. When final action is taken, the agency must publish a notice in the Maryland Register. Final action takes effect 10 days after the notice is published, unless the agency specifies a later date. An agency may make changes in the text of a proposal. If the changes are not substantive, these changes are included in the notice of final action and published in the Maryland Register. If the changes are substantive, the agency must repropose the regulations, showing the changes that were made to the originally proposed text.

Proposed action on regulations may be withdrawn by the proposing agency any time before final action is taken. When an agency proposes action on regulations, but does not take final action within 1 year, the proposal is automatically withdrawn by operation of law, and a notice of withdrawal is published in the Maryland Register.

Title 08
DEPARTMENT OF NATURAL RESOURCES

Subtitle 02 FISHERIES SERVICE

08.02.01 General

Authority: Natural Resources Article, §§4-205.1, 4-602, and 4-11A-02, Annotated Code of Maryland

Notice of Proposed Action

[20-009-P]

The Secretary of Natural Resources proposes to amend Regulation **.16** under **COMAR 08.02.01 General**.

Statement of Purpose

The purpose of this action is to remove the requirement that an individual submit an application for an out-of-State finfish supplier permit at least 45 days in advance of needing the permit. A person will still have to complete an application prior to supplying finfish to someone in Maryland, but the proposed action removes the specific time frame. Due to the implementation of an electronic application process, the requirement is no longer necessary. Department staff are now able to issue a permit within days after receiving an application, provided that all the required supporting documentation is supplied with the application. This change will simplify the process for out-of-State suppliers and Maryland constituents that have submitted pond stocking permit requests and will provide flexibility for new suppliers to quickly enter the market.

Comparison to Federal Standards

There is no corresponding federal standard to this proposed action.

Estimate of Economic Impact

The proposed action has no economic impact.

Economic Impact on Small Businesses

The proposed action has minimal or no economic impact on small businesses.

Impact on Individuals with Disabilities

The proposed action has no impact on individuals with disabilities.

Opportunity for Public Comment

Comments may be sent to Out-of-State Supplier Regulations, Regulatory Staff, Department of Natural Resources Fishing and Boating Services, 580 Taylor Avenue, B-2, Annapolis, MD 21401, or call 410-260-8300, or email to fisheriespubliccomment.dnr@maryland.gov, or fax to 410-260-8310. Comments will be accepted through February 3, 2020. A public hearing has not been scheduled.

.16 Importation of Finfish.

A.—B. (text unchanged)

C. Application.

(1) A person shall apply for an out-of-State supplier permit by submitting a completed application on a form provided by the Department **[**at least 45 days prior to when the activity is requested to begin**]**.

(2) (text unchanged)

D.—E. (text unchanged)

JEANNIE HADDAWAY-RICCIO
Secretary of Natural Resources

Subtitle 02 FISHERIES SERVICE

08.02.10 Horseshoe Crabs

Authority: Natural Resources Article, §4-215, Annotated Code of Maryland

Notice of Proposed Action

[20-001-P]

The Secretary of Natural Resources proposes to amend Regulation **.01** under **COMAR 08.02.10 Horseshoe Crabs**.

Statement of Purpose

The purpose of this action is to remove the requirement to print the trip limits on horseshoe crab permits. Currently, regulation requires the daily catch limit to be printed on the horseshoe crab landing permit. The Department has concluded that this requirement is no longer necessary for management or enforcement. Harvesters will still be required to have their permit in possession, but after this change, they will only receive one permit per season. This change will allow the Department to do in-season changes to manage the quota without reissuing a permit each time. It will also reduce confusion and expenses when managing the fishery to maximize the available quota.

Comparison to Federal Standards

There is no corresponding federal standard to this proposed action.

Estimate of Economic Impact

The proposed action has no economic impact.

Economic Impact on Small Businesses

The proposed action has minimal or no economic impact on small businesses.

Impact on Individuals with Disabilities

The proposed action has no impact on individuals with disabilities.

Opportunity for Public Comment

Comments may be sent to Horseshoe Crab Regulations, Regulatory Staff, Department of Natural Resources Fishing and Boating Services, 580 Taylor Avenue, B-2, Annapolis, MD 21401, or call 410-260-8300, or email to fisheriespubliccomment.dnr@maryland.gov, or fax to 410-260-8310. Comments will be accepted through February 3, 2020. A public hearing has not been scheduled.

.01 Horseshoe Crabs.

A.—D. (text unchanged)

E. Horseshoe Crab Landing Permit.

(1)—(3) (text unchanged)

[(4) The daily catch limits shall be printed on the horseshoe crab landing permit.**]**

[(5)**]** *(4)* — **[**(8)**]** *(7)* (text unchanged)

F.—G. (text unchanged)

JEANNIE HADDAWAY-RICCIO
Secretary of Natural Resources

Title 09
MARYLAND DEPARTMENT OF LABOR

Subtitle 03 COMMISSIONER OF FINANCIAL REGULATION

09.03.10 Credit and Other Regulation

Authority: Business Regulation Article, §2-105; Financial Institutions Article, §§2-105.1 and 11-203; Annotated Code of Maryland

Notice of Proposed Action

[20-012-P]

The Commissioner of Financial Regulation proposes to adopt new Regulation **.04** under **COMAR 09.03.10 Credit and Other Regulation**.

Statement of Purpose

The purpose of this action is to clarify the types of loans that are subject to Financial Institutions Article, §11-219, Annotated Code of Maryland, which constitutes a step towards the modernization of Maryland's consumer credit licensing structure. The proposed regulation should provide clarity for the industry and the Commissioner by eliminating the basis for the current practice of licensees seeking, and the Commissioner issuing, duplicative licenses under the existing rules.

Comparison to Federal Standards

There is no corresponding federal standard to this proposed action.

Estimate of Economic Impact

I. Summary of Economic Impact. Maryland business will be positively impacted by this regulation because it clarifies an existing ambiguity that has resulted in businesses seeking and the Commissioner issuing a consumer loan license and an installment loan license, when only one license should be required.

II. Types of Economic Impact.	Revenue (R+/R-) Expenditure (E+/E-)	Magnitude
A. On issuing agency:	(R-)	Minimal
B. On other State agencies:	NONE	
C. On local governments:	NONE	
	Benefit (+) Cost (-)	**Magnitude**
D. On regulated industries or trade groups:	(-)	Minimal
E. On other industries or trade groups:	NONE	
F. Direct and indirect effects on public:	NONE	

III. Assumptions. (Identified by Impact Letter and Number from Section II.)

A. Due to the elimination of duplicative licensing, based on current licensing figures, 39 licensees will save an aggregate amount

of approximately $33,150 (i.e., $850 each) in licensing fees annually. The Commissioner will lose the same amount in revenue. However, due to the reduction in processing 39 duplicate renewal licenses, the Commissioner believes there will be a negligible impact on capacity and overall expenditures.

D. Due to the elimination of duplicative licensing, based on current licensing figures, 39 licensees will save an aggregate amount of approximately $33,150 (e.g., $850 each) in licensing fees annually. Several regulated industries will benefit from the decreased costs that result from the elimination of the requirement of obtaining duplicative licenses. Thus, certain licensees that pay those duplicative fees will save the annual $850 licensing fee in such cases—for an annual total aggregate savings of $33,150.

Economic Impact on Small Businesses

The proposed action has a meaningful economic impact on small business. An analysis of this economic impact follows. Maryland small businesses will benefit from the clarification. However, the number of small businesses that will be affected positively cannot be estimated.

Impact on Individuals with Disabilities

The proposed action has no impact on individuals with disabilities.

Opportunity for Public Comment

Comments may be sent to Jedd Bellman, Assistant Commissioner, Financial Regulation, Maryland Department of Labor, 500 N. Calvert Street, Baltimore, MD 21202, or call 410-230-6390, or email to jedd.bellman@maryland.gov, or fax to 410-333-0475. Comments will be accepted through February 3, 2020. A public hearing has not been scheduled.

.04 Consumer Loans.

The term loan account in Financial Institutions Article, §11-219, Annotated Code of Maryland:

A. Means any loan or advance of money or credit subject to Commercial Law Article, Title 12, Subtitle 3, Annotated Code of Maryland, the Maryland Consumer Loan Law—Credit Provisions, regardless of whether the loan or advance of money or credit is or purports to be made under Commercial Law Article, Title 12, Subtitle 3, Annotated Code of Maryland; and

B. Does not include an installment loan as defined in Financial Institutions Article, §11-302, Annotated Code of Maryland.

ANTONIO P. SALAZAR
Commissioner of Financial Regulation

Subtitle 13 BOARD FOR PROFESSIONAL LAND SURVEYORS

09.13.07 Educational Equivalency Requirements

Authority: Business Occupations and Professions Article, §*§15-208 and* 15-305, Annotated Code of Maryland

Notice of Proposed Action

[20-007-P]

The State Board for Professional Land Surveyors proposes to repeal existing Regulations **.02** and **.03**, adopt new Regulation **.02**, and recodify existing Regulations **.04—.06** to be Regulations **.03—.05** under **COMAR 09.13.07 Educational Equivalency Requirements**. This action was considered by the State Board for Professional Land Surveyors at their October 18, 2019, meeting, notice of which was published on the Board's website pursuant to General Provisions Article, §3-302(c), Annotated Code of Maryland.

Statement of Purpose

The purpose of this action is to revise the regulations governing educational equivalency and general prelicensing application requirements to provide for a more streamlined path to qualify as an examination applicant for a professional land surveyor's license.

Comparison to Federal Standards

There is no corresponding federal standard to this proposed action.

Estimate of Economic Impact

The proposed action has no economic impact.

Economic Impact on Small Businesses

The proposed action has minimal or no economic impact on small businesses.

Impact on Individuals with Disabilities

The proposed action has no impact on individuals with disabilities.

Opportunity for Public Comment

Comments may be sent to Joseph Cullingford, Executive Director, Design Boards, Maryland Department of Labor, 500 N. Calvert Street, Baltimore, MD 21202, or call 410-230-6262, or email to joseph.cullingford@maryland.gov, or fax to 410-962-8483. Comments will be accepted through February 3, 2020. A public hearing has not been scheduled.

Open Meeting

Final action on the proposal will be considered by the Board for Professional Land Surveyors during a public meeting to be held on February 5, 2020, at 500 N. Calvert Street, Baltimore, MD 21202.

.02 Guidelines for Acceptable Work Experience.

A. Applicants claiming the respective number of years of land surveying experience required in Business Occupations and Professions Article, §15-305(b), (c), (d), (e), or (f), Annotated Code of Maryland, shall demonstrate that the experience was gained by performing tasks in a variety of diverse surveying categories, including, but not limited to, the following:

(1) Control surveys;

(2) Boundary surveys;

(3) Topographic surveys;

(4) Subdivision planning;

(5) Road and street grade design, sediment and erosion control design, storm drainage systems design, and storm water management design, all as more particularly described in Business Occupations and Professions Article, §15-101(k)(1)(vi), Annotated Code of Maryland, and commonly known as "minor engineering experience";

(6) Construction surveys; and

(7) Location drawings.

B. The acceptable work experience described in §A(5) of this regulation may be acquired by a combination of education and experience approved by the Board, as more particularly described in Regulations .03—.05 of this chapter.

C. The Board has the final authority with regard to both the quality and quantity of acceptable work experience.

JOHN V. METTEE, III
Chairman

Subtitle 24 BOARD OF PUBLIC ACCOUNTANCY

09.24.05 Examinations

Authority: Business Occupations and Professions Article, §§2-207, 2-303, 2-305, and 2-307, Annotated Code of Maryland

Notice of Proposed Action

[20-010-P]

The Board of Public Accountancy proposes to amend Regulation **.04** under **COMAR 09.24.05 Examinations**. This action was considered at a public meeting on November 5, 2019, notice of which was provided on the Board of Public Accountancy's website in accordance with General Provisions Article, §3-302(c)(3)(ii), Annotated Code of Maryland.

Statement of Purpose

The purpose of this action is to address the impact of the anticipated changes in the administration of the Uniform CPA Examination on the ability of candidates to retake failed examination sections. Currently, the Uniform CPA Examination is offered in quarterly administration windows. A candidate who fails an examination section may not retake that section in the same administration window. Based on the latest information available, on or before June 20, 2020, the Uniform CPA Examination will eliminate administration windows, and be given on a continuous basis. This change will allow candidates to retake failed examination sections as soon as the grade for the section is released.

Comparison to Federal Standards

There is no corresponding federal standard to this proposed action.

Estimate of Economic Impact

The proposed action has no economic impact.

Economic Impact on Small Businesses

The proposed action has minimal or no economic impact on small businesses.

Impact on Individuals with Disabilities

The proposed action has no impact on individuals with disabilities.

Opportunity for Public Comment

Comments may be sent to Shanai Jordan, Executive Director, State Board of Public Accountancy, Department of Labor, 500 N. Calvert Street, Baltimore, MD 21202, or call 410-230-6318, or email to shanai.jordan@maryland.gov, or fax to 410-333-6314. Comments will be accepted through February 3, 2020. A public hearing has not been scheduled.

Open Meeting

Final action on the proposal will be considered by the Board of Public Accountancy during a public meeting to be held on February 4, 2020, 9 a.m., at 500 N. Calvert St., 3rd Fl. Conf. Room, Baltimore, MD 21202.

.04 Filing an Application with the Board.

A.—.I. (text unchanged)

J. If the examination is offered on a continuous basis with no administration window limitations, a candidate may retake a failed examination section once their grade for that section has been released.

JAMES E. MARSHALL, JR., CPA
Chair
Maryland Board of Public Accountancy

Title 10 MARYLAND DEPARTMENT OF HEALTH

Subtitle 09 MEDICAL CARE PROGRAMS

10.09.89 1915(i) Intensive Behavioral Health Services for Children, Youth, and Families

Authority: Health-General Article, §2-104(b), Annotated Code of Maryland

Notice of Proposed Action

[19-265-P]

The Secretary of Health proposes to amend Regulations **.09—.12** under **COMAR 10.09.89 1915(i) Intensive Behavioral Health Services for Children, Youth, and Families**.

Statement of Purpose

The purpose of this action is to implement a 3.5 percent rate increase in accordance with the Fiscal Year (FY) 2020 State budget, effective July 1, 2019.

Comparison to Federal Standards

There is no corresponding federal standard to this proposed action.

Estimate of Economic Impact

I. Summary of Economic Impact. As provided in the FY 2020 budget and required by the Heroin and Opioid Prevention Effort (HOPE) and Treatment Act of 2017, the proposed action implements a 3.5 percent rate increase for 1915(i) providers. The total impact for FY 2020 is $5,792.

II. Types of Economic Impact.	Revenue (R+/R-) Expenditure (E+/E-)	Magnitude
A. On issuing agency:	(E+)	$5,792
B. On other State agencies:	NONE	
C. On local governments:	NONE	
	Benefit (+) Cost (-)	**Magnitude**
D. On regulated industries or trade groups:	(+)	$5,792
E. On other industries or trade groups:	NONE	
F. Direct and indirect effects on public:	NONE	

III. Assumptions. (Identified by Impact Letter and Number from Section II.)

A. (1) In FY 2020, the 1915(i) program will serve 30 children. This amount assumes FY 2019 actual utilization (30 participants) will continue.

(2) Total expenditures for 1915(i) services in FY 2019 are equal to per-person expenditures in FY 2018, plus a 3.5 percent rate increase, for 30 participants.

(3) Total estimated expenditures for 1915(i) services in FY 2020 are equal to per-person expenditures in FY 2019, plus a 3.5

percent rate increase, for 30 participants.

(4) The difference between the FY 2020 and FY 2019 reimbursement amounts equates to an expenditure increase of $5,792 in FY 2020. This amount is subject to a 61.49 percent federal match ($3,562 federal funds, $2,230 general funds).

D. See A above.

Economic Impact on Small Businesses

The proposed action has a meaningful economic impact on small business. An analysis of this economic impact follows.

This proposal meaningfully impacts 1915(i) providers by providing a 3.5 percent reimbursement rate increase.

Impact on Individuals with Disabilities

The proposed action has no impact on individuals with disabilities.

Opportunity for Public Comment

Comments may be sent to Jake Whitaker, Acting Director, Office of Regulation and Policy Coordination, Maryland Department of Health, 201 West Preston Street, Room 512, Baltimore, MD 21201, or call 410-767-6499 (TTY 800-735-2258), or email to mdh.regs@maryland.gov, or fax to 410-767-6483. Comments will be accepted through February 3, 2020. A public hearing has not been scheduled.

.09 Covered Services— Family Peer Support Services.

Family peer support services:

A.—E. (text unchanged)

F. Effective **[**July 1, 2017**]** *July 1, 2019*, are reimbursed at the following rates:

(1) **[**$16.62**]** *$17.80* per 15 minute unit for face-to-face services; or

(2) **[**$8.30**]** *$8.89* per 15 minute unit for telephonic or other non-face-to-face activities.

.10 Covered Services— Respite Services.

Respite services:

A.—D. (text unchanged)

E. Effective **[**July 1, 2017**]** *July 1, 2019*, are reimbursed at the following rates:

(1) **[**$26.18**]** *$28.04* per **[**one hour**]** *1-hour* unit of service for community-based respite services; or

(2) **[**$207.50**]** *$222.28* per unit of out-of-home respite care.

.11 Covered Services — Expressive and Experiential Behavioral Services.

A.—B. (text unchanged)

C. Reimbursement. Effective **[**July 1, 2017**]** *July 1, 2019*, reimbursement for services described in this regulation shall be as follows:

(1) For individual therapy provided by a:

(a) Licensed mental health professional at a rate of:

(i) **[**$71.17**]** *$76.24* per 45—50 minute session; or

(ii) **[**$93.24**]** *$99.88* per 75—80 minute session;

(b) Non-licensed mental health professional at a rate of:

(i) **[**$64.70**]** *$69.31* per 45-minute session; or

(ii) **[**$84.12**]** *$90.11* per 75—80 minute session; and

(2) For group therapy provided by a:

(a) Licensed mental health professional at a rate of:

(i) **[**$28.30**]** *$30.31* per 45—60 minute session; or

(ii) **[**$36.79**]** *$39.41* per prolonged (75—90 minute) session;

(b) Non-licensed mental health professional at a rate of:

(i) **[**$25.14**]** *$26.93* per 45—60 minute session; or

(ii) **[**$32.68**]** *$35.01* per prolonged (75—90 minute) session.

.12 Covered Services —Intensive In-Home Services.

A.—E. (text unchanged)

F. Effective **[**July 1, 2017**]** *July 1, 2019*, reimbursement for IIHS services shall be provided at the rate of:

(1) **[**$258.96**]** *$277.40* per week of service for EBP-IIHS providers; or

(2) **[**$205.45**]** *$220.08* per week of service for non-EBP-IIHS providers

ROBERT R. NEALL
Secretary of Health

Subtitle 12 ADULT HEALTH

10.12.06 Increased Supports for Working Individuals with Disabilities Program

Authority: Ch. 447, Acts of 2018

Notice of Proposed Action

[20-003-P]

The Secretary of Health proposes to adopt new Regulations **.01—.10** under a new chapter **COMAR 10.12.06 Increased Supports for Working Individuals with Disabilities Program**. At this time the Secretary of Health is also withdrawing the proposal to adopt new Regulations **.01—.09** under a new chapter, **COMAR 10.12.06 Increased Supports for Working Individuals with Disabilities Program**, that was published in 46:2 Md. R. 62—64 (January 18, 2019).

Statement of Purpose

The purpose of this action is to outline the eligibility, covered health care services, and other components of the State-funded demonstration program, as required by Ch. 447, Acts of 2018. The demonstration program will provide health care services limited to private duty nursing services for a limited number of eligible individuals who are enrolled in Maryland Medical Assistance through the Employed Individuals with Disabilities program.

Comparison to Federal Standards

There is no corresponding federal standard to this proposed action.

Estimate of Economic Impact

I. Summary of Economic Impact. The proposed action has an economic impact of $500,000 in State general fund expenditures to the Department in FY2020. The Department is structuring the demonstration program so the cost of services provided under the program will not exceed the budgeted amount.

II. Types of Economic Impact.	Revenue (R+/R-) Expenditure (E+/E-)	Magnitude
A. On issuing agency:	(E+)	$500,000
B. On other State agencies:	NONE	
C. On local governments:	NONE	
	Benefit (+) Cost (-)	Magnitude
D. On regulated industries or trade groups:	NONE	

E. On other industries or trade groups: (+) $500,000

F. Direct and indirect effects on public: NONE

III. Assumptions. (Identified by Impact Letter and Number from Section II.)

A. The program is a new pilot program which will provide health services not covered under the Medicaid State plan. Non-Medicaid State funds must be utilized to support these services for individuals with disabilities. The funding will cover the cost of administering the program and reimbursement to providers.

E. Agencies that manage nurses (RN, LPN) who provide direct care in the community will be reimbursed using the same hourly rates that Medicaid has established for these services. However, the total amount of funding to be expended on reimbursement is still to be determined because there is no expenditure history for this new pilot program. A portion of the total program funding will be used to administer it.

Economic Impact on Small Businesses

The proposed action has minimal or no economic impact on small businesses.

Impact on Individuals with Disabilities

The proposed action has an impact on individuals with disabilities as follows:

The "Increased Supports for Working Individuals with Disabilities Program" is a 3-year demonstration program that will use State-only funds to provide private duty nursing services in the community for a limited number of eligible individuals with disabilities who are enrolled in Maryland Medical Assistance under the Employed Individuals with Disabilities program. For individuals for whom private duty nursing services are not covered under the Maryland Medicaid State Plan, this demonstration program will provide medically necessary supports to allow the participants to maintain their employment.

Opportunity for Public Comment

Comments may be sent to Jake Whitaker, Acting Director, Office of Regulation and Policy Coordination, Maryland Department of Health, 201 West Preston Street, Room 512, Baltimore, MD 21201, or call 410-767-6499 (TTY 800-735-2258), or email to mdh.regs@maryland.gov, or fax to 410-767-6483. Comments will be accepted through February 3, 2020. A public hearing has not been scheduled.

.01 Scope and Effective Dates.

A. The Increased Supports for Working Individuals with Disabilities Program is a State demonstration program established within the Maryland Department of Health to provide private duty nursing services in the community for individuals:

(1) Enrolled in the Maryland Medical Assistance Program as employed individuals with disabilities; and

(2) Who meet the eligibility criteria as outlined in Regulation .03 of this chapter.

B. This demonstration program is in effect for a period of 3 years beginning June 1, 2018, through May 31, 2021.

.02 Definitions.

A. In this chapter, the following terms have the meanings indicated.

B. Terms Defined.

(1) "Authorized representative" means an individual or organization with legal authority to act on behalf of the Program applicant or participant, including:

(a) An individual or organization designated in writing by the applicant or participant;

(b) The applicant's or participant's legal guardian, if one has been appointed, or a person who has in good faith filed an application to be appointed the applicant's or participant's legal guardian but who has not yet been appointed the applicant's or participant's legal guardian;

(c) An individual appointed to make legal or medical decisions on behalf of the applicant or recipient pursuant to a validly executed power of attorney; and

(d) An attorney retained by the individual.

(2) "Department" means the Maryland Department of Health.

(3) "Employed Individuals with Disabilities" has the meaning stated in COMAR 10.09.41.02C.

(4) "Employment" means the condition of having paid work.

(5) "Evaluation" means a determination of the health status of a participant in a participant's home or any other appropriate setting by a licensed professional for the purpose of determining the medical necessity and quantity of private duty nursing services that will promote optimal functional ability for the participant.

(6) "Medical Assistance" means the program administered by the State under Title XIX of the Social Security Act which provides comprehensive medical and other health-related care for categorically eligible and medically needy individuals.

(7) "Medically necessary" has the meaning stated in COMAR 10.09.36.01.

(8) "Private duty nursing" has the meaning stated in COMAR 10.09.69.02B.

(9) "Program" means the Increased Supports for Working Individuals with Disabilities Program, which is the demonstration program to provide private duty nursing services for certain individuals and is:

(a) Authorized under this chapter;

(b) Funded entirely through State general funds; and

(c) Administered by the Department.

(10) "Secretary" means the Secretary of Health or the Secretary's designee.

.03 Participant Eligibility.

A. General Requirements.

(1) A participant enrolled in the Program shall meet the conditions §§B and C of this regulation.

(2) A participant's eligibility for services under the Program shall be reevaluated by the Department every 12 months or more frequently if needed due to a significant change in the participant's condition, needs, or financial status.

(3) A participant shall first seek coverage for services available under Medical Assistance, Medicare, or another insurer.

B. Technical Eligibility. A participant shall be:

(1) Enrolled in the Medical Assistance Employed Individuals with Disabilities Program;

(2) At least 21 years old or older, but younger than 65 years old; and

(3) Employed for an average of at least 20 hours a week.

C. Medical Eligibility. A participant shall:

(1) Be determined by the Department to need the level of care provided in a nursing facility as defined by the Department;

(2) Need medically necessary private duty nursing services in order to allow the participant to live in the community and to maintain employment; and

(3) Have one or more of the qualifying conditions as outlined in the Medical Assistance Rare and Expensive Case Management program under COMAR 10.09.69.17.

D. A participant's enrollment in the Program shall be terminated if the participant:

(1) No longer meets the eligibility requirements in §§B and C of this regulation;

(2) Is without services for 30 consecutive days;

(3) Voluntarily chooses to disenroll from the Program; or

(4) Moves to another state.

E. A participant shall notify the Department within 10 working days of changes that may affect eligibility.

.04 Application Process.

A. The application review process shall be based on a first-come, first-served basis.

B. The application process may include:

(1) Review of medical records; and

(2) A nursing evaluation.

C. The Department shall give the applicant written notice of the decision to approve or deny Program services.

.05 Covered Services.

A. The Program may cover private duty nursing services:

(1) Not covered by Medical Assistance, another insurer, or any other State or federal program; and

(2) Medically necessary as determined by a nursing evaluation conducted by the Department.

B. A participant's eligibility for services covered under the Program shall be reevaluated by the Department every 12 months or more frequently:

(1) If needed due to a change in the participant's clinical status; or

(2) If one or more of the conditions in Regulation .03D of this chapter are met.

C. The Department shall provide the participant written notice of the reevaluation decision.

D. The services provided under the Program may not supplant or augment services covered under Medical Assistance.

.06 Conditions for Provider Participation.

A. A provider of services under the Program:

(1) Shall be approved and enrolled as a provider in the Medical Assistance Program;

(2) Shall comply with all State and federal laws and regulations that are applicable to the services the provider is licensed by the Department to provide; and

(3) Shall ensure compliance with all the Medical Assistance provisions under COMAR 10.09.53.03.

B. An immediate family member of the participant or an individual who ordinarily resides with the participant may not render services under this Program.

.07 Limitations.

The Department shall limit enrollment and services provided based on available State funding.

.08 Payment Procedures.

The Program shall reimburse a Program provider:

A. Based on rates established in COMAR 10.09.53.07; and

B. Contingent on submission of documentation required by the Department.

.09 Cause for Provider Suspension or Removal and Imposition of Sanctions.

Cause for suspension or removal and imposition of sanctions are as set forth under Medical Assistance regulations under COMAR 10.09.36.08.

.10 Appeal Procedures.

A. An applicant for Program services, or a participant in Program services, individually or by an authorized representative, may request a hearing before the Secretary to appeal the denial, reduction, or termination of Program services in accordance with State Government Article, Title 10, Subtitle 2, Annotated Code of Maryland.

B. The procedures set forth in COMAR 10.01.03 shall apply to all hearings requested under §A of this regulation.

C. An appeal shall be postmarked, delivered in person, or sent by electronic mail or facsimile to the Department within 30 days after the applicant or participant receives notice of the Department's decision to deny the application for Program services, or reduce or terminate Program services.

D. Notice of the Department's decision is presumed to have been received 3 days after the date of the notice.

E. The Secretary may deny a request for hearing if the reason for the appeal is to contest a denial of services due to lack of available budgeted funds.

F. The applicant has the burden of proof by a preponderance of the evidence in an appeal under this regulation.

G. If the recipient files the hearing request on or before the effective date of termination or reduction in services, then services will continue pending the issuance of a final agency decision.

H. The decision of the Secretary is the final administrative decision for purposes of judicial review pursuant to State Government Article, §10-222, Annotated Code of Maryland.

ROBERT R. NEALL
Secretary of Health

Title 13A
STATE BOARD OF EDUCATION

Subtitle 07 SCHOOL PERSONNEL

13A.07.13 State Board of Education Teacher Member Election

Authority: Education Article, §2-202, Annotated Code of Maryland

Notice of Proposed Action

[19-232-P]

The Maryland State Board of Education proposes to adopt new Regulations **.01—.07** under a new chapter, **COMAR 13A.07.13 State Board of Education Teacher Member Election**. This action was considered by the State Board of Education at their meeting held on August 27, 2019.

Statement of Purpose

The purpose of this action is to establish the process for holding an election to select the teacher member of the State Board of Education.

Comparison to Federal Standards

There is no corresponding federal standard to this proposed action.

Estimate of Economic Impact

I. Summary of Economic Impact. The Maryland State Department of Education (MSDE) anticipates expending approximately $30,000 to secure a contract with a vendor to offer an online election. This funding was not allocated by the General Assembly. The MSDE anticipates the funding to come from the General Funds allocated for the State Board of Education.

II. Types of Economic Impact.	Revenue (R+/R-) Expenditure (E+/E-)	Magnitude
A. On issuing agency:	(E+)	$30,000
B. On other State agencies:	NONE	
C. On local governments:	NONE	
	Benefit (+) Cost (-)	Magnitude
D. On regulated industries or trade groups:	NONE	
E. On other industries or trade groups:	NONE	
F. Direct and indirect effects on public:	NONE	

III. Assumptions. (Identified by Impact Letter and Number from Section II.)

A. The MSDE anticipates expending approximately $30,000 to secure a contract with a vendor to offer an online election.

Economic Impact on Small Businesses

The proposed action has minimal or no economic impact on small businesses.

Impact on Individuals with Disabilities

The proposed action has no impact on individuals with disabilities.

Opportunity for Public Comment

Comments may be sent to Sarah Spross, M.Ed., Assistant State Superintendent, Division of Educator Certification and Program Approval, Maryland State Department of Education, 200 West Baltimore Street, Baltimore, MD 21201, or call 410-767-0385 (TTY 410-333-6442), or email to sarah.spross@maryland.gov, or fax to 410-333-8963. Comments will be accepted through February 3, 2020. A public hearing has not been scheduled.

Open Meeting

Final action on the proposal will be considered by the State Board of Education during a public meeting to be held on February 25, 2020, at 9 a.m., at 200 West Baltimore Street, Baltimore, MD 21201.

Editor's Note: The text of this document will not be printed here because it appeared as a Notice of Emergency Action in 46:23 Md. R. 1062—1064 (November 8, 2019), referenced as [19-232-E].

KAREN B. SALMON, Ph.D.
State Superintendent of Schools

Title 15
MARYLAND DEPARTMENT OF AGRICULTURE

Subtitle 06 PLANT PEST CONTROL

15.06.04 Regulation of Invasive Plants

Authority: Agriculture Article, §§*2-103(b) and* 9.5-301, Annotated Code of Maryland

Notice of Proposed Action

[20-005-P]

The Maryland Department of Agriculture proposes to amend Regulation **.06** under **COMAR 15.06.04 Regulation of Invasive Plants**.

Statement of Purpose

The purpose of this action is to add two new plants to the Tier 2 invasive plant classification, and otherwise relating to invasive plants.

Comparison to Federal Standards

There is no corresponding federal standard to this proposed action.

Estimate of Economic Impact

The proposed action has no economic impact.

Economic Impact on Small Businesses

The proposed action has minimal or no economic impact on small businesses.

Impact on Individuals with Disabilities

The proposed action has no impact on individuals with disabilities.

Opportunity for Public Comment

Comments may be sent to Kim Rice, Program Manager, Plant Protection and Weed Management, Maryland Department of Agriculture, 50 Harry S. Truman Parkway, Annapolis, MD 21401, or call 410-841-5920, or email to kimberly.rice@maryland.gov, or fax to 410-841-5835. Comments will be accepted through February 3, 2020. A public hearing has not been scheduled.

.06 Tier 1 and Tier 2 Invasive Plants.

A.—B. (text unchanged)

C. The following plants are classified as Tier 2 invasive plants upon adoption of this regulation (see Department's website for adoption date http://mda.maryland.gov/plants-pests/Pages/maryland invasive plants prevention and control.aspx):

(1)—(9) (text unchanged)

(10) Pyrus calleryana (Callery pear); **[**and**]**

(11) Tetradium daniellii (bee bee tree)**[.]***;*

(12) Aralia elata (Japanese angelica-tree); and

(13) Berberis thunbergii (Japanese barberry).

D.—G. (text unchanged)

JULIANNE A. OBERG
Deputy Secretary of Agriculture

Title 20
PUBLIC SERVICE COMMISSION

Subtitle 45 SERVICE SUPPLIED BY TELEPHONE COMPANIES

20.45.09 Intrastate Switched Access and Pay Phone Dial Around Surcharge Rates

Authority: Public Utilities Article, §§2-113, 2-121, 4-201—4-203, and 4-301, Annotated Code of Maryland

Notice of Proposed Action

[20-011-P]

The Maryland Public Service Commission proposes to amend Regulation **.03** under **COMAR 20.45.09 Intrastate Switched Access and Pay Phone Dial Around Surcharge Rates**. This action was considered by the Public Service Commission at a scheduled rule-making (RM 64) meeting held on October 16, 2019, notice of which was given under General Provisions Article, §3-302, Annotated Code of Maryland.

Statement of Purpose

The purpose of this action is to reduce intrastate originating access rates for all carriers to the current interstate rate.

Comparison to Federal Standards

There is no corresponding federal standard to this proposed action.

Estimate of Economic Impact

I. Summary of Economic Impact. The new rules will likely result in a rebalancing of revenues across local telephone companies in Maryland, due to the elimination of a subsidy. This means that some telephone companies will receive less revenue from switched access service than they previously received, and some telephone companies will receive more revenue. An informal survey of telephone companies in Maryland shows that most utilities will receive a net benefit from the proposed rule, but the two incumbent local exchange carriers will see a net loss. The estimated redistribution of revenues is roughly $630,000 per year. The net effect of the rule for all telephone companies in Maryland is zero.

II. Types of Economic Impact.	Revenue (R+/R-) Expenditure (E+/E-)	Magnitude
A. On issuing agency:	NONE	
B. On other State agencies:	NONE	
C. On local governments:	NONE	
	Benefit (+) Cost (-)	Magnitude
D. On regulated industries or trade groups:		
(1)	(-)	$630,000
(2)	(+)	$630,000
E. On other industries or trade groups:	NONE	
F. Direct and indirect effects on public:	NONE	

III. Assumptions. (Identified by Impact Letter and Number from Section II.)

D(1). The $630,000 is an estimate of the redistributed revenues from industry group D(1) to industry group D(2).

D(2). The $630,000 is an estimate of the redistributed revenues received from industry group D(1) to industry group D(2).

Economic Impact on Small Businesses

The proposed action has minimal or no economic impact on small businesses.

Impact on Individuals with Disabilities

The proposed action has no impact on individuals with disabilities.

Opportunity for Public Comment

Comments may be sent to Andrew S. Johnston, Executive Secretary, Maryland Public Service Commission, 6 St. Paul Street, 16th Floor, Baltimore, MD 21202, or call 410-767-8067, or fax to 410-333-6495. Comments will be accepted through February 3, 2020. A public hearing has not been scheduled.

.03 Intrastate Switch Access Rates.

[A. The Commission shall calculate the effective rate per switched access minute of use for the local exchange telephone company having the largest number of access lines in Maryland.

B. Within 30 days of the date of the notice from the Commission of the switched rate established under §A of this regulation, a facilities-based telecommunications carrier subject to this regulation shall modify, if necessary, its switched access rate to produce a rate that is not greater than the rate calculated under §A of this regulation.**]**

A. The provisions of this regulation are subject to the requirements of federal law.

B. A local exchange company's intrastate originating switched access rates may not exceed its interstate originating access rates, as authorized by the Federal Communications Commission. In mirroring its interstate originating access rates, a local exchange company shall:

(1) Eliminate or zero-rate any intrastate rate element that does not exist in the interstate jurisdiction;

(2) Decrease any intrastate rate element that is higher than its corresponding interstate rate element to equal the interstate rate; and

(3) Increase any intrastate rate element that is lower than its corresponding interstate rate element to equal the interstate rate.

C. Notwithstanding §B of this regulation, a local exchange company's intrastate per-query rate for use of an 8YY database may not exceed the rate of the incumbent local exchange telephone company having the largest number of access lines in Maryland.

ANDREW S. JOHNSTON
Executive Secretary

Title 30
MARYLAND INSTITUTE FOR EMERGENCY MEDICAL SERVICES SYSTEMS (MIEMSS)

Subtitle 09 COMMERCIAL AMBULANCE SERVICES

30.09.07 Operational Requirements

Authority: Education Article, §§13-508 and 13-515, Annotated Code of Maryland

Notice of Proposed Action

[20-013-P]

The Maryland Emergency Medical Services Board proposes to amend Regulation **.02** under **COMAR 30.09.07 Operational Requirements**.

Statement of Purpose

The purpose of this action is to lower the minimum certification level of a commercial ambulance driver to that of an emergency medical responder (EMR) for an advanced life support (ALS), neonatal, or specialty care (SCT) transport. Current regulations require that the driver be certified at the level of an emergency medical technician (EMT) or higher in order to be the driver.

Comparison to Federal Standards

There is no corresponding federal standard to this proposed action.

Estimate of Economic Impact

I. Summary of Economic Impact. The agency is proposing to change staffing requirements for certain ambulances to allow individuals who are certified as emergency medical responders (EMRs) to serve as drivers on a commercial ambulance. The current requirement limits the number of available commercial ambulance drivers which, in turn, limits the availability of commercial ambulances to transport patients. This shortage has led to increased response times for the inter-facility transfer of patients.

II. Types of Economic Impact.	Revenue (R+/R-) Expenditure (E+/E-)	Magnitude
A. On issuing agency:	NONE	
B. On other State agencies:	NONE	
C. On local governments:	NONE	
	Benefit (+) Cost (-)	Magnitude
D. On regulated industries or trade groups:	(+)	Not quantifiable
E. On other industries or trade groups:	NONE	
F. Direct and indirect effects on public:	(+)	Not quantifiable

III. Assumptions. (Identified by Impact Letter and Number from Section II.)

D. Expenses for training and employing EMRs are less than the cost for EMTs so commercial ambulance services will experience a cost savings. The amount of that savings depends on the size of the service and the number of employees.

F. The proposed regulations are expected to directly benefit citizens since under these regulations commercial ambulance response times will be reduced. Permitting EMRs to drive the ambulances expands the pool of potential drivers which will improve the timeliness of the ambulance response

Economic Impact on Small Businesses

The proposed action has minimal or no economic impact on small businesses.

Impact on Individuals with Disabilities

The proposed action has no impact on individuals with disabilities.

Opportunity for Public Comment

Comments may be sent to Lisa Chervon, Director, State Office of Commercial Ambulance Licensing and Regulation, Maryland Institute for Emergency Medical Services Systems, 653 West Pratt Street, Baltimore, MD 21201, or call 410-706-8511, or email to lchervon@miemss.org, or fax to 410-706-8552. Comments will be accepted through February 3, 2020. A public hearing has not been scheduled.

.02 Operational Requirements for Commercial Ambulance Services.

A. Staffing. A commercial ambulance service shall:

(1)—(3) (text unchanged)

(4) Assure that each ALS licensed ground ambulance is staffed with:

(a) A driver who is certified as **[**emergency medical technician**]** *an emergency medical responder* or higher and possesses and, while on duty, carries a valid motor vehicle license; and

(b) (text unchanged)

(5)—(10) (text unchanged)

B.—F. (text unchanged)

THEODORE R. DELBRIDGE, M.D., M.P.H.
Executive Director

Title 31
MARYLAND INSURANCE ADMINISTRATION

Subtitle 09 LIFE INSURANCE AND ANNUITIES

31.09.07 Charitable Gift Annuities

Authority: Insurance Article, §§2-109 and 16-114, Annotated Code of Maryland

Notice of Proposed Action

[20-002-P]

The Insurance Commissioner proposes to amend Regulations **.02** and **.03** under **COMAR 31.09.07 Charitable Gift Annuities**.

Statement of Purpose

The purpose of this action is to amend Regulations .02 and .03 under COMAR 31.09.07 Charitable Gift Annuities. Specifically, the regulations will be amended regarding the annual requirement that charitable organizations provide evidence of sufficient reserves covering outstanding gift annuities by clarifying that supplemental reserve schedules to the audited financial statement can be verified by an independent certified public accountant or a qualified actuary.

Comparison to Federal Standards

There is no corresponding federal standard to this proposed action.

Estimate of Economic Impact

The proposed action has no economic impact.

Economic Impact on Small Businesses

The proposed action has minimal or no economic impact on small businesses.

Impact on Individuals with Disabilities

The proposed action has no impact on individuals with disabilities.

Opportunity for Public Comment

Comments may be sent to Lisa Larson, Regulations Manager, Maryland Insurance Administration, 200 St. Paul Place, Suite 2700, Baltimore, MD 21202, or call 410-468-2007, or email to insuranceregreview.mia@maryland.gov, or fax to 410-468-2020. Comments will be accepted through February 3, 2020. A public hearing has not been scheduled.

.02 Definitions.

A. (text unchanged)

B. Terms Defined.

(1)—(2) (text unchanged)

(3) "Qualified actuary" means an individual who is a member in good standing of the American Academy of Actuaries and is qualified to sign statements of actuarial opinion in accordance with the American Academy of Actuaries' standards.

.03 Required Reserves.

A.—C. (text unchanged)

D. As part of the organization's annual *audit* report, the organization shall submit a statement by a certified public accountant *or qualified actuary* verifying the existence of adequate reserves among the organization's assets.

E. (text unchanged)

ALFRED W. REDMER, JR.
Insurance Commissioner

Subtitle 10 HEALTH INSURANCE — GENERAL

Notice of Proposed Action

[20-008-P]

The Insurance Commissioner proposes to adopt:

(1) New Regulations **.01—.05** under a new chapter, **COMAR 31.10.46 Pharmacy Benefits Managers—Maximum Allowable Cost**;

(2) New Regulations **.01—.05** under a new chapter, **COMAR 31.10.47 Cost Pricing and Reimbursement Other than MAC**; and

(3) New Regulations **.01—.05** under a new chapter, **COMAR 31.10.48 Filing of Contracts and Amendments**.

Statement of Purpose

The purpose of this action is to adopt new regulations to comply with Ch. 400, Acts of 2019, which amended Insurance Article, §§15-102.3, 15-1601, 15-1628, 15-1628.1, 15-1628.3, 15-1631, and 15-1642, Annotated Code of Maryland. These changes require the Maryland Insurance Administration to promulgate regulations regarding pharmacy benefits managers (PBM), their contracts with pharmacies, and the appeal process for pharmacies to use when there is a dispute over cost pricing between them and the PBMs. These regulations implement these legislative changes.

Comparison to Federal Standards

There is no corresponding federal standard to this proposed action.

Estimate of Economic Impact

I. Summary of Economic Impact. To the extent that pharmacy benefits managers (PBMs) will be required to submit additional paperwork to the Maryland Insurance Administration (MIA) in the MIA's review of complaints, the PBMs may incur minimal administrative costs.

II. Types of Economic Impact.	Revenue (R+/R-) Expenditure (E+/E-)	Magnitude
A. On issuing agency:	NONE	
B. On other State agencies:	NONE	
C. On local governments:	NONE	
	Benefit (+) Cost (-)	**Magnitude**
D. On regulated industries or trade groups:	NONE	
Administrative cost	(-)	Minimal
E. On other industries or trade groups:	NONE	
F. Direct and indirect effects on public:	NONE	

III. Assumptions. (Identified by Impact Letter and Number from Section II.)

D. Assuming pharmacy benefits managers (PBMs) will have to submit additional paperwork to the Maryland Insurance Administration in the MIA's review of grievances, the PBMs may incur minimal administrative costs

Economic Impact on Small Businesses

The proposed action has minimal or no economic impact on small businesses.

Impact on Individuals with Disabilities

The proposed action has no impact on individuals with disabilities.

Opportunity for Public Comment

Comments may be sent to Lisa Larson, Regulations Manager, Maryland Insurance Administration, 200 Saint Paul Place, Suite 2700, Baltimore, MD 21202, or call 410-468-2007, or email to insuranceregreview.mia@maryland.gov, or fax to 410-468-2020. Comments will be accepted through February 3, 2020. A public hearing has not been scheduled.

31.10.46 Pharmacy Benefits Managers—Maximum Allowable Cost

Authority: Insurance Article, §§15-1601, 15-1604, 15-1605, 15-1607, 15-1609, 15-1628, 15-1628.1, and 15-1642, Annotated Code of Maryland

.01 Scope.

This chapter applies to all maximum allowable cost pricing claims made to a pharmacy benefits manager for a multisource generic prescription drug, medical product, or device, provided to a beneficiary of a purchaser.

.02 Definitions.

A. In this chapter, the following terms have the meanings indicated.

B. Terms Defined.

(1) "Appeal decision" means a written or electronic notice issued by a PBM in response to an appeal filed by a contracted pharmacy of the maximum allowable cost used to adjudicate a claim.

(2) "Beneficiary" means an individual who receives prescription drug coverage or benefits from a purchaser.

(3) "Carrier" means:

(a) An insurer;

(b) A nonprofit health service plan; or

(c) A health maintenance organization.

(4) "Compensation program" has the meaning stated in Insurance Article, §15-1601, Annotated Code of Maryland.

(5) "Contracted pharmacy" has the meaning stated in Insurance Article, §15-1628.1, Annotated Code of Maryland.

(6) "Fee or performance-based reimbursement related to an adjudicated claim or incentive program" means any downward adjustment of an adjudicated claim and includes, but is not limited to, using the application of the following:

(a) Refill rates of generic, brand name, or preferred drugs;

(b) Comparison of dispensing rates of a pharmacy or pharmacist to another pharmacy or pharmacist; or

(c) Combined aggregate overall percentage discounts applied to all adjudicated claims.

(7) "MAC complaint" means a communication by a contracted pharmacy that disputes the appeal decision, and is submitted on a MAC complaint form to the Commissioner, after the pharmacy benefits manager's internal appeal process has been exhausted as required by Insurance Article, §15-1628.1(f), Annotated Code of Maryland.

(8) "MAC complaint form" means the form adopted by the Commissioner under Regulation .05 of this chapter.

(9) "MAC list" means a list of multisource generic drugs, medical products, and devices for which a MAC has been established by a pharmacy benefits manager or a purchaser.

(10) "Maximum allowable cost" or "MAC" has the meaning stated in Insurance Article, §15-1628.1, Annotated Code of Maryland.

(11) "Multisource generic drug" means a generic drug as defined in Health-General Article, §21-2C-01(f), Annotated Code of Maryland, for which there is at least one other drug and does not include a brand name drug as that term is defined in Health Occupations, §12-504, Annotated Code of Maryland.

(12) "Participating pharmacy contract" means a contract filed with the Commissioner that is:

(a) Between a pharmacy and a:

(i) Pharmacy benefits manager;

(ii) Pharmacy services administrative organization; or

(iii) Group purchasing organization;

(b) Filed at least 30 days before the contract or an amendment to the contract is to become effective;

(c) Filed as required by the Commissioner;

(d) Not disapproved by the Commissioner; and

(e) In compliance with the requirements stated in this chapter.

(13) "Pharmacist" has the meaning stated in Health Occupations Article, §12–101, Annotated Code of Maryland.

(14) "Pharmacy" has the meaning stated in Health Occupations Article, §12–101, Annotated Code of Maryland.

(15) "Pharmacy benefits management services" has the meaning stated in Insurance Article, §15-1601, Annotated Code of Maryland.

(16) "Pharmacy benefits manager" or "PBM" has the meaning stated in Insurance Article, §15-1601, Annotated Code of Maryland.

(17) "Pharmacy services administration organization" or "PSAO" means an entity that provides a contracted pharmacy with contracting administrative services relating to prescription drug benefits.

(18) "Pricing information" means anything used in the mathematical calculation to determine the payment to a contracted pharmacy.

(19) "Purchaser" has the meaning stated in Insurance Article, §15-1601, Annotated Code of Maryland.

(20) "Source" means the publisher or publishers stated in the participating pharmacy contract, used by the PBM, in any manner, to establish the basis of the PBM's MAC reimbursement amount to a contracted pharmacy, under a participating pharmacy contract compensation program.

(21) "Working day" means any day that the Maryland Insurance Administration is open for business.

.03 Disclosures to a Contracted Pharmacy.

A. A PBM, whether its contract is directly with a pharmacy or indirectly with a pharmacy through a PSAO or group purchasing organization, shall disclose to a contracted pharmacy at the time of entering into a contract with a pharmacy and at least 30 working days before any contract change for a contracted pharmacy:

(1) The applicable terms, conditions, and reimbursement rates, including:

(a) The sources; and

(b) The terms of the compensation program;

(2) The process and procedures for verifying pharmacy benefits and beneficiary eligibility;

(3) The dispute resolution, internal appeal process under Regulation .04 of this chapter, and audit appeals process; and

(4) The process and procedures for verifying the prescription drugs included on the formularies used by the PBM.

B. A PBM, whether its contract is directly with a pharmacy or indirectly with a pharmacy through a PSAO or group purchasing organization, shall:

(1) Update its pricing information at least every 7 days;

(2) Establish a reasonable process by which a contracted pharmacy has access to the current and applicable MAC lists and price list in an electronic format as updated in accordance with the requirements of this section; and

(3) Immediately after a pricing information update occurs pursuant to this regulation, use the updated pricing information in calculating the payments made to all contracted pharmacies.

C. Except as provided in §§D and E of this regulation, a contracted pharmacy may not be charged a fee or held responsible by a purchaser or PBM for:

(1) A fee or performance-based reimbursement related to an adjudicated claim; or

(2) An incentive program.

D. A PBM, whether its contract is directly with a pharmacy or indirectly with a pharmacy through a PSAO or group purchasing organization, shall disclose any fee or performance-based reimbursement that relates to the adjudication of a claim or incentive program by stating:

(1) The specific dollar amount of a fee or alternative reimbursement; or

(2) The specific percentage of the potential adjustment relating to reimbursement of a claim.

E. The disclosure described in §D shall be:

(1) Provided during claims processing; or

(2) Described in detail on the initial remittance advice.

F. A claim paid on behalf of a carrier to a contracted pharmacy under a participating pharmacy contract is subject to the requirements of Insurance Article, §§15-1005, 15-1008, 15-1009, and 15-1631, Annotated Code of Maryland.

.04 Internal Appeal Procedures.

A. Each PBM subject to this chapter shall establish written procedures to investigate and resolve disputes filed by a contracted pharmacy.

B. The internal appeal procedures established by the PBM shall:

(1) Be in writing; and

(2) Contain administrative processes and safeguards designed to ensure and verify that the MAC pricing was determined in accordance with the participating pharmacy contract and Maryland law, and that the contract provisions have not been applied in an arbitrary or capricious manner.

C. The procedures established by the PBM may not require:

(1) More than one appeal before filing a complaint with the Commissioner; or

(2) The payment of a fee to file an appeal.

D. The internal appeal procedures established by the PBM shall be provided to the Commissioner on request.

.05 MAC Complaint Process.

A. Prior to filing a MAC complaint with the Commissioner, a contracted pharmacy or its designee shall exhaust the internal appeal process established in the participating pharmacy contract and used by the PBM to appeal, investigate, and resolve a dispute regarding the MAC claim amount.

B. A contracted pharmacy or its designee may file a MAC complaint with the Commissioner to dispute a PBM's appeal decision for the following reasons:

(1) The PBM's MAC pricing did not meet the requirements of Insurance Article, Title 15, Subtitle 16, Annotated Code of Maryland, related to MAC pricing; or

(2) The PBM's MAC pricing did not meet the applicable terms of the applicable participating pharmacy contract.

C. A MAC complaint is properly completed and may be filed if a contracted pharmacy or designee:

(1) Completes all applicable portions of the Commissioner's MAC complaint form;

(2) Provides a copy of the relevant contract or the provisions that are related to the MAC appeal, including but not limited to:

(a) MAC;

(b) MAC pricing;

(c) Sources;

(d) Pricing information; and

(e) The compensation program of the applicable participating pharmacy contract; and

(3) Provides a copy of the appeal decision.

D. A MAC complaint may not include more than ten appeal decisions using a single MAC complaint form.

E. Notification of the MAC Complaint to the PBM.

(1) Upon receipt of a completed MAC complaint form, the Commissioner shall provide a copy of the submitted MAC complaint form to the PBM.

(2) Within 5 working days of receiving the Commissioner's notice, the PBM shall provide the Commissioner:

(a) A complete, unredacted copy of the applicable portion of the participating pharmacy contract relating to the compensation program and the complaint filed with the Commissioner, including any other contract under which the pricing information is determined;

(b) A copy of the applicable source and pricing information used to calculate the MAC;

(c) The MAC calculated on a per unit basis based on the same generic product identifier or national drug code number;

(d) A mathematical calculation that demonstrates how the reimbursement amount was determined;

(e) All information required to complete the response portion of the MAC complaint form; and

(f) Any other information the Commissioner may require for the purposes of determining a PBM's compliance with:

(i) Insurance Article, Annotated Code of Maryland;

(ii) This chapter;

(iii) The compensation program; or

(iv) The applicable terms of the applicable participating pharmacy contract.

31.10.47 Cost Pricing and Reimbursement Other than MAC

Authority: Insurance Article, §§15-1601, 15-1604, 15-1605, 15-1607, 15-1609, 15-1628, 15-1628.2, 15-1630, and 15-1642, Annotated Code of Maryland

.01 Scope.

This chapter applies to all cost pricing and reimbursement disputes or a request to review the failure to pay the contractual reimbursement amount of a submitted claim made to a pharmacy benefits manager by a pharmacist or pharmacy for a prescription drug, medical product, or device, provided to a beneficiary of a purchaser.

.02 Definitions.

A. In this chapter, the following terms have the meanings indicated.

B. Terms Defined.

(1) "Appeal decision" means a written or electronic notice in response to an appeal under this chapter provided to a contracted pharmacy that includes a reason for the appeal denial.

(2) "Beneficiary" means an individual who receives prescription drug coverage or benefits from a purchaser.

(3) "Carrier" means:

(a) An insurer;

(b) A nonprofit health service plan; or

(c) A health maintenance organization.

(4) "Compensation program" has the meaning stated in Insurance Article, §15-1601, Annotated Code of Maryland.

(5) "Complaint" means a communication by a contracted pharmacy that disputes the appeal decision, and is submitted on a complaint form to the Commissioner, after the pharmacy benefits manager's internal appeal process has been exhausted as required by Insurance Article, §15-1628.2, Annotated Code of Maryland.

(6) "Complaint form" means the form developed by the Commissioner under Regulation .05 of this chapter.

(7) "Contracted pharmacy" has the meaning stated in Insurance Article, §15-1628.1, Annotated Code of Maryland.

(8) "Direct or indirect remuneration fee" means an adjustment in total compensation received directly or indirectly by a contracted pharmacy from a PBM that is determined after the sale of the product or service, including an adjustment of an adjudicated claim based on the use of a generic effective rate or fee or performance-based reimbursement.

(9) "Fee or performance-based reimbursement related to an adjudicated claim or incentive program" means any downward adjustment of an adjudicated claim and includes, but is not limited to, using the application of the following:

(a) Refill rates of generic, brand name, or preferred drugs;

(b) Comparison of dispensing rates of a pharmacy or pharmacist to another pharmacy or pharmacist; or

(c) Combined aggregate overall percentage discounts applied to all adjudicated claims.

(10) "Participating pharmacy contract" means a contract filed with the Commissioner that is:

(a) Between a pharmacy and a:

(i) Pharmacy benefits manager;

(ii) Pharmacy services administrative organization; or

(iii) Group purchasing organization;

(b) Filed at least 30 days before the contract or an amendment to the contract is to become effective;

(c) Filed as required by the Commissioner;

(d) Not disapproved by the Commissioner; and

(e) In compliance with the requirements stated in this chapter.

(11) "Pharmacist" has the meaning stated in Health Occupations Article, §12–101, Annotated Code of Maryland.

(12) "Pharmacy" has the meaning stated in Health Occupations Article, §12–101, Annotated Code of Maryland.

(13) "Pharmacy benefits management services" has the meaning stated in Insurance Article, §15-1601, Annotated Code of Maryland.

(14) "Pharmacy benefits manager" or "PBM" has the meaning stated in Insurance Article, §15-1601, Annotated Code of Maryland.

(15) "Pharmacy services administration organization" or "PSAO" means an entity that provides a contracted pharmacy with contracting administrative services relating to prescription drug benefits.

(16) "Pricing information" means anything used in the mathematical calculation to determine the payment to a contracted pharmacy.

(17) "Purchaser" has the meaning stated in Insurance Article, §15-1601, Annotated Code of Maryland.

(18) Review Decision.

(a) "Review decision" means a written or electronic notice in response to a request from a contracted pharmacy for a review of a failure to pay the contractual reimbursement amount of a submitted claim.

(b) "Review decision" does not include an appeal decision.

(19) "Source" means the publisher or publishers stated in the participating pharmacy contract, used by the PBM, in any manner, to establish the basis of the PBM's pricing or the reimbursement amount to a contracted pharmacy, under a participating pharmacy contract's stated compensation program.

(20) "Working day" means any day that the Maryland Insurance Administration is open for business.

.03 Disclosures to a Contracted Pharmacy.

A. A PBM, whether its contract is directly with a pharmacy or indirectly with a pharmacy through a PSAO or group purchasing organization, shall disclose to a contracted pharmacy at the time of entering into a contract with a pharmacy and at least 30 working days before any contract change for a contracted pharmacy:

(1) The applicable terms, conditions, and reimbursement rates, including:

(a) The sources; and

(b) The terms of the compensation program;

(2) The process and procedures for verifying pharmacy benefits and beneficiary eligibility;

(3) The dispute resolution, internal appeal process under Regulation .04 of this chapter, and audit appeals process; and

(4) The process and procedures for verifying the prescription drugs included on the formularies used by the PBM.

B. Except as provided in §§C and D of this regulation, a contracted pharmacy may not be charged a fee or held responsible by a purchaser or PBM for:

(1) A fee or performance-based reimbursement related to an adjudicated claim; or

(2) An incentive program.

C. A PBM, whether its contract is directly with a pharmacy or indirectly with a pharmacy through a PSAO or group purchasing organization, shall disclose any fee or performance-based reimbursement that relates to the adjudication of a claim or incentive program by stating:

(1) The specific dollar amount of a fee or alternative reimbursement; or

(2) The specific percentage of the potential adjustment relating to reimbursement of a claim.

D. The disclosure described in §C shall be:

(1) Provided during claims processing; or

(2) Described in detail on the initial remittance advice.

E. A claim paid on behalf of a carrier to a contracted pharmacy under a participating pharmacy contract is subject to the requirements of Insurance Article, §§15-1005, 15-1008, 15-1009, and 15-1631, Annotated Code of Maryland.

.04 Internal Appeal Procedures.

A. Each PBM subject to this chapter shall establish written procedures to investigate and resolve disputes filed by a contracted pharmacy.

B. The internal appeal procedures established by the PBM shall:

(1) Be in writing; and

(2) Contain administrative processes and safeguards designed to ensure and verify that the pricing was determined in accordance with the participating pharmacy contract and Maryland law, and that the contract provisions have not been applied in an arbitrary or capricious manner.

C. The procedures established by the PBM may not require:

(1) More than one appeal before filing a complaint with the Commissioner; or

(2) The payment of a fee to file an appeal.

D. The internal appeal procedures established by the PBM shall be provided to the Commissioner on request.

E. The internal procedures established by the PBM shall:

(1) Provide written notice of the PBM's decision no later than 90 days after receipt of the appeal or review;

(2) Pay any money due within 30 days after the internal review is complete; and

(3) Provide a contracted pharmacy:

(a) 21 days to file an appeal after the contracted pharmacy is charged a direct or indirect remuneration fee; or

(b) A minimum of 180 days to request review of the reimbursement amount of a submitted claim.

.05 Complaint Process.

A. Prior to filing a complaint with the Commissioner, a contracted pharmacy or its designee shall exhaust the internal appeal process established in the participating pharmacy contract.

B. A contracted pharmacy or its designee may file a complaint with the Commissioner to dispute a PBM's appeal decision for the following reasons:

(1) The PBM's cost pricing did not comply with Insurance Article, Title 15, Subtitle 16, Annotated Code of Maryland; or

(2) The PBM's cost pricing or reimbursement amount determination did not meet the terms of the applicable participating pharmacy contract.

C. A complaint is properly completed and may be filed if a contracted pharmacy or its designee:

(1) Completes all applicable portions of the Commissioner's complaint form;

(2) Provides a copy of the relevant contract or the provisions that are related to the appeal, including but not limited to establishing a drug pricing or pharmacy reimbursement amount, sources, pricing information, and the compensation program of the applicable participating pharmacy contract; and

(3) Provides a copy of the appeal decision.

D. A complaint may not include more than ten appeal decisions using a single complaint form.

E. Notification of the Complaint to the PBM.

(1) Upon receipt of a completed complaint form, the Commissioner shall provide a copy of the submitted complaint form to the PBM.

(2) Within 5 working days of receiving the Commissioner's notice, the PBM shall provide the Commissioner:

(a) A complete, unredacted copy of the applicable portion of the participating pharmacy contract relating to the compensation program and the complaint filed with the Commissioner, including any other contract under which the pricing or reimbursement amount is determined;

(b) A copy of the applicable source and pricing information used to calculate the pharmacy reimbursement amount;

(c) A mathematical calculation that demonstrates how the reimbursement amount was determined;

(d) All information required to complete the response portion of the complaint form; and

(e) Any other information the Commissioner may require for the purposes of determining a PBM's compliance with:

(i) Insurance Article, Annotated Code of Maryland;

(ii) This chapter;

(iii) The compensation program; or

(iv) The applicable terms of the participating pharmacy contract.

31.10.48 Filing of Contracts and Amendments

Authority: Insurance Article, §§2-109, 12-203(d)(2), 15-1628, and 15-1642, Annotated Code of Maryland

.01 Applicability and Scope.

This chapter applies to the submission of any participating pharmacy contract or amendment required to be filed under Insurance Article, Title 15, Subtitle 16, Annotated Code of Maryland.

.02 Definitions.

A. In this chapter, the following terms have the meanings indicated.

B. Terms Defined.

(1) "Administration" means the Maryland Insurance Administration.

(2) "Commissioner" means the Maryland Insurance Commissioner.

(3) "Filing entity" means a pharmacy benefits manager or PBM, pharmacy services administration organization or PSAO, or group purchasing organization or GPO required to file a contract or amendment to a contract under this chapter.

(4) "Noncompliant" means a contract or amendment that is not in compliance with Maryland statutes and regulations.

(5) "Participating pharmacy contract" has the meaning stated in Insurance Article, §15-1601(h)(1), Annotated Code of Maryland.

(6) "Working day" means any day that the Maryland Insurance Administration is open for business.

.03 Submission Requirements.

A. Pursuant to the requirements of Insurance Article, §15-1628(b), Annotated Code of Maryland, a filing entity shall submit to the Commissioner all participating pharmacy contracts and amendments to contracts.

B. Unless it is disapproved by the Commissioner, a filing entity may not use a contract or amendment to a contract unless:

(1) It has been filed with the Commissioner and 30 days have passed since the filing was acknowledged by the Commissioner in writing as having been received; or

(2) Subject to the filing corrections under §C of this regulation, a filing entity receives written notice that the contract or amendment to a contract may be used in Maryland and at least 30 days have passed since the initial filing was acknowledged by the Commissioner in writing as having been received.

C. A filing entity that receives written notice from the Commissioner that its contract or amendment to a contract contains defects and is disapproved may resubmit the filing indicating the corrections made.

D. Except under the circumstances in §C of this regulation, a filing entity may not file a contract or amendment that has been previously disapproved by the Commissioner.

E. Nothing in this regulation shortens the time period for notice under Insurance Article, §15-1628(a), Annotated Code of Maryland, which requires a PBM to provide at least 30 working days' notice before any contract change.

F. The filing shall include a cover letter which includes the following:

(1) A list of the contracts and amendments included in the submission; and

(2) A brief description of the purpose of each contract and amendment included in the submission.

G. Each page of a contract or amendment shall be identified by a form number which is unique to that form. This number shall be printed in the lower left-hand corner of the first page, and no other number shall appear in close proximity to the form number.

H. A filing made under this chapter shall include a signed certification from a responsible officer of the filing entity that, to the best of the officer's knowledge and belief, the contracts and amendments comply with applicable statutes and regulations.

I. A PBM may not file a contract or amendment before the PBM has successfully registered as a PBM with the Commissioner.

.04 Noncompliant Contract Terms

A. A filing entity may have a contract or amendment to a contract disapproved if the contract or amendment contains or uses any language that:

(1) Violates Insurance Article, Title 15, Subtitle 16, Annotated Code of Maryland, or any applicable statutory provisions, including but not limited to Insurance Article, §§15-112, 15-112.2(a)—(e), 15-123(d), 15-1004, 15-1005, 15-1008(c), 15-1009, 15-1628—15-1628.3, 15-1629, 15-1631, and 15-1633—15-1639, and Health-General Article, §§19-710(s) and (t) and 19-712.2, Annotated Code of Maryland;

(2) Does not disclose the components of the compensation program through which a reimbursement rate is set;

(3) Includes a definition of "multisource generic drug" that is inconsistent with COMAR 31.10.46, or "generic" or "brand name drug" that is inconsistent with Health Occupations Article, §12-504, Annotated Code of Maryland;

(4) Allows the PBM to reimburse a covered drug in an amount that differs, including zero, based on the identity of the wholesale distributor used by a contracting pharmacy for acquisition of the covered drug;

(5) Except for instances of error or fraud, allows the PBM to reclassify, recategorize, or recharacterize an adjudicated claim;

(6) Other than a provider fee allowed under Insurance Article, §15-112, Annotated Code of Maryland, requires a pharmacy or pharmacist to pay a licensing fee or other fee to participate in the provider panel;

(7) In any way prohibits or restricts a pharmacist or pharmacy from filing a complaint with the Commissioner; or

(8) Fails to include the internal appeal provisions in the contract.

B. No provisions in Insurance Article, Annotated Code of Maryland, or this chapter may be waived or modified by contract.

.05 Use of Noncompliant Contract or Amendment.

A. If a PBM uses a contract or amendment which becomes effective and the contract or amendment is subsequently found by the Commissioner to be noncompliant, the Commissioner may:

(1) Issue an order that:

(a) Gives notice of the disapproval;

(b) States a reason for the disapproval; and

(c) States the effective date of the disapproval in the notice; and

(2) Impose a penalty as provided under Insurance Article, §15-1642, Annotated Code of Maryland.

B. An order under this regulation is subject to a hearing under Insurance Article, §2-210, Annotated Code of Maryland.

C. A request for a hearing under this regulation does not stay that portion of the order that requires a PBM to cease and desist from the conduct identified in the order.

ALFRED W. REDMER, JR.
Insurance Commissioner

Title 36
MARYLAND STATE LOTTERY AND GAMING CONTROL AGENCY

Subtitle 02 LOTTERY PROVISIONS

36.02.03 Retailer Requirements

Authority: *Criminal Law Article, §12-301.1;* State Government Article, §§9-110—9-113**[**,**]***;* Annotated Code of Maryland; *Ch. 603, §6, Acts of 2012*

Notice of Proposed Action

[20-006-P]

The Maryland State Lottery and Gaming Control Agency proposes to amend Regulation **.12** under **COMAR 36.02.03 Retailer Requirements**. This action was considered at the Maryland Lottery and Gaming Control Commission open meeting held on November 21, 2019, notice of which was given pursuant to General Provisions Article, §3-302(c), Annotated Code of Maryland.

Statement of Purpose

The purpose of this action is to clarify that a retailer may not have an illegal gaming device or a slot machine on its premises and thus a retailer cannot offer any gaming activity except Lottery play. This proposed action also brings the structure of this regulation into compliance with the Style Manual for Maryland Regulations.

Comparison to Federal Standards

There is no corresponding federal standard to this proposed action.

Estimate of Economic Impact

The proposed action has no economic impact.

Economic Impact on Small Businesses

The proposed action has minimal or no economic impact on small businesses.

Impact on Individuals with Disabilities

The proposed action has no impact on individuals with disabilities.

Opportunity for Public Comment

Comments may be sent to James B. Butler, Managing Director, Organizational Compliance, Maryland Lottery and Gaming Control Agency, 1800 Washington Blvd., Suite 330, Baltimore, MD 21230, or call 410-230-8781, or email to jbutler@maryland.gov, or fax to 410-230-8727. Comments will be accepted through February 3, 2020. A public hearing has not been scheduled.

.12 Prohibited Acts

A.—B. (text unchanged)

C. A retailer shall require all lottery tickets to be paid for by the purchaser at the time of **[**buying and before the time of the drawing**]** *purchase*.

D. A retailer may not:

(1) (text unchanged)

(2) Sell to or cash a lottery ticket for a person younger than 18 years old; **[**or**]**

(3) Allow an employee younger than 18 years old to sell or cash a lottery ticket or operate lottery equipment**[**.**]***;*

(4) Extend credit in any manner for the sale of lottery tickets;

(5) Offer customers alcoholic beverages to induce them to purchase or redeem a lottery ticket; or

(6) Except as provided in Criminal Law Article, §§12-301.1, 12-304, and 12-308, Annotated Code of Maryland, have on its

premises an illegal gaming device or a slot machine as defined in Criminal Law Article, §12-301, Annotated Code of Maryland.

E. Games of Chance.

(1) This section does not apply to a game of chance offered legally by a retailer that is:

(a) A video lottery facility;

(b) A legal operator of an electronic gaming device that is licensed as an amusement game in Baltimore City or Baltimore County under Criminal Law Article, §12-301.1, Annotated Code of Maryland;

(c) Subject to regulation by the Comptroller under Criminal Law Article, §12-304, Annotated Code of Maryland;

(d) A legal operator of instant bingo under Criminal Law Article, §12-308, Annotated Code of Maryland; or

(e) Authorized to offer paper tip jar gaming under Criminal Law Article, Title 13, Annotated Code of Maryland.

(2) Except for a lottery game or promotion, a retailer may not offer a game of chance on the retailer's premises.

[E.**]** *F.* — **[**G.**]** *H.* (text unchanged)

[H. A retailer may not extend credit in any manner for the sale of lottery tickets.

I. A retailer may not offer customers alcoholic beverages to induce them into purchasing or redeeming a lottery ticket.**]**

GORDON MEDENICA
Director

Special Documents

DEPARTMENT OF THE ENVIRONMENT

SUSQUEHANNA RIVER BASIN COMMISSION

Projects Approved for Consumptive Uses of Water

AGENCY: Susquehanna River Basin Commission.

ACTION: Notice.

SUMMARY: This notice lists the projects approved by rule by the Susquehanna River Basin Commission during the period set forth in "DATES."

DATES: October 1—31, 2019

ADDRESSES: Susquehanna River Basin Commission, 4423 North Front Street, Harrisburg, PA 17110-1788.

FOR FURTHER INFORMATION CONTACT: Jason E. Oyler, General Counsel and Secretary to the Commission, telephone: (717) 238-0423, ext. 1312; fax: (717) 238-2436; e-mail: joyler@srbc.net. Regular mail inquiries May be sent to the above address.

SUPPLEMENTARY INFORMATION: This notice lists the projects, described below, receiving approval for the consumptive use of water pursuant to the Commission's approval by rule process set forth in 18 CFR §806.22 (f)(13) and 18 CFR §806.22 (f) for the time period specified above:

Water Source Approval – Issued Under 18 CFR 806.22(f)(13):

Beech Resources, LLC, Montoursville Borough Water Works; NOI-2019-0330; Montoursville Borough, Lycoming County, Pa.; Obtain Up to 0.4000 mgd; Approval Date: October 30, 2019.

Approvals By Rule – Issued Under 18 CFR 806.22(f):

Repsol Oil & Gas USA, LLC; Pad ID: SHERMAN (03 144) M; ABR-201910001; Columbia Township, Bradford County, Pa.; Consumptive Use of Up to 6.0000 mgd; Approval Date: October 7, 2019.

EOG Resources, Inc.; Pad ID: Houseknecht 2H; ABR-20090419.R2; Springfield Township, Bradford County, Pa.; Consumptive Use of Up to 5.0000 mgd; Approval Date: October 10, 2019.

EOG Resources, Inc.; Pad ID: Ward M 1H; ABR-20090421.R2; Springfield Township, Bradford County, Pa.; Consumptive Use of Up to 5.0000 mgd; Approval Date: October 10, 2019.

EOG Resources, Inc.; Pad ID: Housknecht 3H; ABR-20090422.R2; Springfield Township, Bradford County, Pa.; Consumptive Use of Up to 5.0000 mgd; Approval Date: October 10, 2019.

EOG Resources, Inc.; Pad ID: Housknecht 1H; ABR-20090423.R2; Springfield Township, Bradford County, Pa.; Consumptive Use of Up to 5.0000 mgd; Approval Date: October 10, 2019.

Repsol Oil & Gas USA, LLC; Pad ID: CLDC (02 178) M; ABR-201910002; Ward Township, Tioga County, Pa.; Consumptive Use of Up to 6.0000 mgd; Approval Date: October 14, 2019.

Cabot Oil & Gas Corporation; Pad ID: Pijanowski J P1; ABR-201404002.R1; Springville Township, Susquehanna County, Pa.; Consumptive Use of Up to 5.0000 mgd; Approval Date: October 21, 2019.

Cabot Oil & Gas Corporation; Pad ID: Plonski I P1; ABR-201405008.R1; Gibson Township, Susquehanna County, Pa.; Consumptive Use of Up to 5.0000 mgd; Approval Date: October 21, 2019.

Cabot Oil & Gas Corporation; Pad ID: Friedland Farms P1; ABR-201405009.R1; Lenox Township, Susquehanna County, Pa.; Consumptive Use of Up to 5.0000 mgd; Approval Date: October 21, 2019.

Chief Oil & Gas, LLC; Pad ID: Phelps B Drilling Pad; ABR-201409001.R1; Lathrop Township, Susquehanna County, Pa.; Consumptive Use of Up to 2.5000 mgd; Approval Date: October 21, 2019.

Cabot Oil & Gas Corporation; Pad ID: Gesford P1; ABR-20090547.R2; Dimock Township, Susquehanna County, Pa.; Consumptive Use of Up to 3.5750 mgd; Approval Date: October 21, 2019.

Cabot Oil & Gas Corporation; Pad ID: Greenwood; ABR-20090548.R2; Dimock Township, Susquehanna County, Pa.; Consumptive Use of Up to 3.5750 mgd; Approval Date: October 21, 2019.

Cabot Oil & Gas Corporation; Pad ID: Gesford P4; ABR-20090550.R2; Dimock Township, Susquehanna County, Pa.; Consumptive Use of Up to 3.5750 mgd; Approval Date: October 21, 2019.

Seneca Resources Company, LLC.; Pad ID: PHC 23H/24H; ABR-20090917.R2; Lawrence Township, Clearfield County, Pa.; Consumptive Use of Up to 3.0000 mgd; Approval Date: October 21, 2019.

Seneca Resources Company, LLC.; Pad ID: PHC 28H/29H; ABR-20090918.R2; Lawrence Township, Clearfield County, Pa.; Consumptive Use of Up to 3.0000 mgd; Approval Date: October 21, 2019.

Seneca Resources Company, LLC.; Pad ID: D. M. Pino Pad H; ABR-20090933.R2; Covington Township, Tioga County, Pa.; Consumptive Use of Up to 2.0000 mgd; Approval Date: October 21, 2019.

Cabot Oil & Gas Corporation; Pad ID: Heitsman P1; ABR-20090537.R2; Dimock Township, Susquehanna County, Pa.; Consumptive Use of Up to 3.5750 mgd; Approval Date: October 24, 2019.

Cabot Oil & Gas Corporation; Pad ID: Lathrop P1; ABR-20090538.R2; Springville Township, Susquehanna County, Pa.; Consumptive Use of Up to 3.5750 mgd; Approval Date: October 24, 2019.

Cabot Oil & Gas Corporation; Pad ID: Hubbard P1; ABR-20090545.R2; Dimock Township, Susquehanna County, Pa.; Consumptive Use of Up to 3.5750 mgd; Approval Date: October 24, 2019.

Cabot Oil & Gas Corporation; Pad ID: HeitsmanA P2; ABR-20090552.R2; Dimock Township, Susquehanna County, Pa.; Consumptive Use of Up to 3.5750 mgd; Approval Date: October 24, 2019.

Cabot Oil & Gas Corporation; Pad ID: SevercoolB P1; ABR-20090536.R2; Dimock Township, Susquehanna County, Pa.; Consumptive Use of Up to 3.5750 mgd; Approval Date: October 25, 2019.

Cabot Oil & Gas Corporation; Pad ID: Ratzel P1; ABR-20090539.R2; Dimock Township, Susquehanna County, Pa.; Consumptive Use of Up to 3.5750 mgd; Approval Date: October 25, 2019.

Cabot Oil & Gas Corporation; Pad ID: Smith P1; ABR-20090540.R2; Springville Township, Susquehanna County, Pa.;

Consumptive Use of Up to 3.5750 mgd; Approval Date: October 25, 2019.

Cabot Oil & Gas Corporation; Pad ID: Rozanski P1; ABR-20090553.R2; Dimock Township, Susquehanna County, Pa.; Consumptive Use of Up to 3.5750 mgd; Approval Date: October 25, 2019.

Cabot Oil & Gas Corporation; Pad ID: Smith P3; ABR-20090554.R2; Springville Township, Susquehanna County, Pa.; Consumptive Use of Up to 3.5750 mgd; Approval Date: October 28, 2019.

AUTHORITY: Pub. L. 91-575, 84 Stat. 1509 et seq., 18 CFR Parts 806, 807, and 808.

Dated: December 10, 2019.

JASON E. OYLER
General Counsel and Secretary to the Commission
[20-01-36]

SUSQUEHANNA RIVER BASIN COMMISSION

Projects Approved for Consumptive Uses of Water

AGENCY: Susquehanna River Basin Commission.

ACTION: Notice.

SUMMARY: This notice lists the projects approved by rule by the Susquehanna River Basin Commission during the period set forth in "DATES."

DATES: November 1—30, 2019

ADDRESSES: Susquehanna River Basin Commission, 4423 North Front Street, Harrisburg, PA 17110-1788.

FOR FURTHER INFORMATION CONTACT: Jason E. Oyler, General Counsel and Secretary to the Commission, telephone: (717) 238-0423, ext. 1312; fax: (717) 238-2436; e-mail: joyler@srbc.net. Regular mail inquiries May be sent to the above address.

SUPPLEMENTARY INFORMATION: This notice lists the projects, described below, receiving approval for the consumptive use of water pursuant to the Commission's approval by rule process set forth in 18 CFR §806.22 (f)(13) and 18 CFR §806.22 (f) for the time period specified above:

Water Source Approval – Issued Under 18 CFR 806.22(f):

Cabot Oil & Gas Corporation; Pad ID: Teel P1; ABR-20090541.R2; Springville Township, Susquehanna County, Pa.; Consumptive Use of Up to 3.5750 mgd; Approval Date: November 12, 2019.

Cabot Oil & Gas Corporation; Pad ID: Teel P5; ABR-20090542.R2; Springville Township, Susquehanna County, Pa.; Consumptive Use of Up to 3.5750 mgd; Approval Date: November 12, 2019.

Cabot Oil & Gas Corporation; Pad ID: Teel P6; ABR-20090543.R2; Springville Township, Susquehanna County, Pa.; Consumptive Use of Up to 3.5750 mgd; Approval Date: November 12, 2019.

Cabot Oil & Gas Corporation; Pad ID: Ely P1; ABR-20090546.R2; Dimock Township, Susquehanna County, Pa.; Consumptive Use of Up to 3.5750 mgd; Approval Date: November 12, 2019.

Cabot Oil & Gas Corporation; Pad ID: ButlerL P1; ABR-201405010.R1; Lathrop Township, Susquehanna County, Pa.; Consumptive Use of Up to 5.0000 mgd; Approval Date: November 12, 2019.

Chief Oil & Gas, LLC; Pad ID: SGL-12 B Drilling Pad; ABR-201410005.R1; Overton Township, Bradford County, Pa.; Consumptive Use of Up to 2.5000 mgd; Approval Date: November 12, 2019.

Chesapeake Appalachia, L.L.C.; Pad ID: Jayne; ABR-20091021.R2; Auburn Township, Susquehanna County, Pa.; Consumptive Use of Up to 7.5000 mgd; Approval Date: November 18, 2019.

Chesapeake Appalachia, L.L.C.; Pad ID: Roundwood; ABR-201410001.R1; Braintrim Township, Wyoming County, Pa.; Consumptive Use of Up to 7.5000 mgd; Approval Date: November 18, 2019.

Chesapeake Appalachia, L.L.C.; Pad ID: James Smith; ABR-20091020.R2; Terry Township, Bradford County, Pa.; Consumptive Use of Up to 7.5000 mgd; Approval Date: November 21, 2019.

Chesapeake Appalachia, L.L.C.; Pad ID: Gowan; ABR-20091001.R2; Terry Township, Bradford County, Pa.; Consumptive Use of Up to 7.5000 mgd; Approval Date: November 25, 2019.

Chesapeake Appalachia, L.L.C.; Pad ID: Harry; ABR-20091017.R2; West Burlington Township, Bradford County, Pa.; Consumptive Use of Up to 7.5000 mgd; Approval Date: November 25, 2019.

Seneca Resources Company, LLC; Pad ID: DCNR 595 Pad D; ABR-20090827.R2; Bloss Township, Tioga County, Pa.; Consumptive Use of Up to 1.0001 mgd; Approval Date: November 25, 2019.

AUTHORITY: Pub. L. 91-575, 84 Stat. 1509 et seq., 18 CFR Parts 806, 807, and 808.

Dated: December 10, 2019.

JASON E. OYLER
General Counsel and Secretary to the Commission
[20-01-32]

SUSQUEHANNA RIVER BASIN COMMISSION

Grandfathering (GF) Registration Notice

AGENCY: Susquehanna River Basin Commission.

ACTION: Notice.

SUMMARY: This notice lists Grandfathering Registration for projects by the Susquehanna River Basin Commission during the period set forth in DATES.

DATES: October 1—31, 2019.

ADDRESSES: Susquehanna River Basin Commission, 4423 North Front Street, Harrisburg, PA 17110-1788.

FOR FURTHER INFORMATION CONTACT: Jason E. Oyler, General Counsel and Secretary to the Commission, telephone: (717) 238-0423, ext. 1312; fax: (717) 238-2436; e-mail: joyler@srbc.net. Regular mail inquiries May be sent to the above address.

SUPPLEMENTARY INFORMATION: This notice lists GF Registration for projects, described below, pursuant to 18 CFR 806, Subpart E for the time period specified above:

Grandfathering Registration Under 18 CFR part 806, Subpart E:

Fairview Golf Course, Inc., GF Certificate No. GF-201910049, West Cornwall Township, Lebanon County, Pa.; On-site Well; Issue Date: October 17, 2019.

Hegins-Hubley Authority – Public Water Supply System, GF Certificate No. GF-201910050, Hegins and Hubley Townships, Schuylkill County, Pa.; Wells 1, 2, and 3, and Spring 1; Issue Date: October 17, 2019.

T. A. & Son, LLC, GF Certificate No. GF-201910051, Pine Creek Township, Clinton County, Pa.; West Branch Susquehanna River and Pine Creek; Issue Date: October 17, 2019

AUTHORITY*:* Pub. L. 91-575, 84 Stat. 1509 et seq., 18 CFR parts 806 and 808.

Dated: December 10, 2019.

JASON E. OYLER
General Counsel and Secretary to the Commission
[20-01-34]

SUSQUEHANNA RIVER BASIN COMMISSION

Grandfathering (GF) Registration Notice

AGENCY: Susquehanna River Basin Commission.

ACTION: Notice.

SUMMARY: This notice lists Grandfathering Registration for projects by the Susquehanna River Basin Commission during the period set forth in DATES.

DATES: November 1—30, 2019.

ADDRESSES: Susquehanna River Basin Commission, 4423 North Front Street, Harrisburg, PA 17110-1788.

FOR FURTHER INFORMATION CONTACT: Jason E. Oyler, General Counsel and Secretary to the Commission, telephone: (717) 238-0423, ext. 1312; fax: (717) 238-2436; e-mail: joyler@srbc.net. Regular mail inquiries May be sent to the above address.

SUPPLEMENTARY INFORMATION: This notice lists GF Registration for projects, described below, pursuant to 18 CFR 806, Subpart E for the time period specified above:

Grandfathering Registration Under 18 CFR part 806, Subpart E:

Byler Golf Management, Inc. – Blue Mountain Golf Course, GF Certificate No. GF-201911052, Bethel Township, Lebanon County, Pa.; Well 1; Issue Date: November 13, 2019.

Crown Club LP – Colonial Golf & Tennis Club, GF Certificate No. GF-201911053, Lower Paxton Township, Dauphin County, Pa.; Paxton Creek and consumptive use; Issue Date: November 13, 2019.

Dover Township – Public Water Supply System, GF Certificate No. GF-201911054, Dover Township, York County, Pa.; Wells 2, 3, 4, 5, 6, and 7; Issue Date: November 13, 2019.

SUEZ Water Pennsylvania Inc. – Shavertown Operation, GF Certificate No. GF-201911055, Dallas and Kingston Townships, Luzerne County, Pa.; Hassold Well; Issue Date: November 13, 2019.

Towanda Country Club, GF Certificate No. GF-201911056, Wysox Township, Bradford County, Pa.; Well 1 and Ponds 1, 2, and 3; Issue Date: November 13, 2019.

Williamsburg Municipal Authority – Public Water Supply System, GF Certificate No. GF-201911057, Woodbury Township, Blair County, Pa.; Wells 1 and 2; Issue Date: November 13, 2019.

Village of Homer – Public Water Supply System, GF Certificate No. GF-201911058, Village of Homer, Cortland County, N.Y.; Wells 2 and 3; Issue Date: November 20, 2019.

Pennsylvania Fish & Boat Commission – Tylersville State Fish Hatchery, GF Certificate No. GF-201911059, Logan Township, Clinton County, Pa.; Tylersville Spring; Issue Date: November 20, 2019

AUTHORITY*:* Pub. L. 91-575, 84 Stat. 1509 et seq., 18 CFR parts 806 and 808.

Dated: December 10, 2019.

JASON E. OYLER
General Counsel and Secretary to the Commission
[20-01-35]

SUSQUEHANNA RIVER BASIN COMMISSION

Actions Taken at December 5, 2019, Meeting

AGENCY: Susquehanna River Basin Commission.

ACTION: Notice.

SUMMARY: As part of its regular business meeting held on December 5, 2019, in Harrisburg, Pennsylvania, the Commission approved the applications of certain water resources projects, and took additional actions, as set forth in the Supplementary Information below.

DATES: December 5, 2019.

ADDRESSES: Susquehanna River Basin Commission, 4423 N. Front Street, Harrisburg, PA 17110-1788.

FOR FURTHER INFORMATION CONTACT: Jason E. Oyler, General Counsel and Secretary, telephone: (717) 238-0423, ext. 1312; fax: (717) 238-2436; e-mail: joyler@srbc.net. Regular mail inquiries may be sent to the above address. See also Commission website at www.srbc.net.

SUPPLEMENTARY INFORMATION: In addition to the actions taken on projects identified in the summary above and the listings below, the following items were also presented or acted upon at the business meeting: (1) informational presentation on the Chiques Creek Watershed in Lancaster County, Pa.; (2) adoption of a Regulatory Fee Schedule to become effective January 1, 2020; (3) approval of three contractual agreements; (4) a report on a delegated settlement; (5) approval of a regulatory waiver request; and (6) approval of Regulatory Program projects.

Project Applications Approved:

The Commission approved the following project applications:

Project Sponsor and Facility: Cabot Oil & Gas Corporation (Tunkhannock Creek), Lenox Township, Susquehanna County, Pa. Application for renewal of surface water withdrawal of up to 1.500 mgd (peak day) (Docket No. 20151201).

Project Sponsor and Facility: Town of Cortlandville, Cortland County, N.Y. Application for groundwater withdrawal of up to 1.300 mgd (30-day average) from Lime Hollow Well 2.

Project Sponsor and Facility: Town of Cortlandville, Cortland County, N.Y. Application for groundwater withdrawal of up to 1.300 mgd (30-day average) from Lime Hollow Well 7.

Project Sponsor and Facility: Town of Cortlandville, Cortland County, N.Y. Application for groundwater withdrawal of up to 1.008 mgd (30-day average) from the Terrace Road Well.

Project Sponsor: Graymont (PA) Inc. Project Facility: Pleasant Gap Facility, Spring Township, Centre County, Pa. Modification to increase consumptive use by an additional 0.098 mgd (30-day average), for a total consumptive use of up to 0.720 mgd (30-day average), and change limits from peak day to 30-day average (Docket No. 20050306).

Project Sponsor: Hazleton City Authority. Project Facility: Hazleton Division, Hazle Township, Luzerne County, Pa. Application for groundwater withdrawal of up to 0.354 mgd (30-day average) from Barnes Run Well 3.

Project Sponsor and Facility: Leola Sewer Authority (will be issued to Upper Leacock Township Municipal Authority), Upper Leacock Township, Lancaster County, Pa. Application for renewal of groundwater withdrawal of up to 0.263 mgd (30-day average) from Well 16 (Docket No. 19890702).

Project Sponsor and Facility: Pennsylvania State University, College Township, Centre County, Pa. Application for renewal of consumptive use of up to 2.622 mgd (peak day) (Docket No. 19890106).

Project Sponsor and Facility: Pennsylvania State University, College Township, Centre County, Pa. Application for renewal of groundwater withdrawal of up to 1.728 mgd (30-day average) from Well UN-33 (Docket No. 19890106).

Project Sponsor and Facility: Pennsylvania State University, College Township, Centre County, Pa. Application for renewal of groundwater withdrawal of up to 1.678 mgd (30-day average) from Well UN-34 (Docket No. 19890106).

Project Sponsor and Facility: Pennsylvania State University, College Township, Centre County, Pa. Application for renewal of groundwater withdrawal of up to 1.728 mgd (30-day average) from Well UN-35 (Docket No. 19890106).

Project Sponsor and Facility: Sugar Hollow Water Services LLC (Susquehanna River), Eaton Township, Wyoming County, Pa. Application for renewal of surface water withdrawal of up to 1.500 mgd (peak day) (Docket No. 20151204).

Project Sponsor and Facility: SWN Production Company, LLC (Susquehanna River), Great Bend Township, Susquehanna County, Pa. Application for renewal of surface water withdrawal of up to 2.000 mgd (peak day) (Docket No. 20151205).

Projects Approved Involving a Diversion

Project Sponsor and Facility: City of Aberdeen, Harford County, Md. Modifications to extend the approval term of the consumptive use, surface water withdrawal, and out-of-basin diversion approval (Docket No. 20021210) to allow additional time for evaluation of the continued use of the source for the Aberdeen Proving Ground-Aberdeen Area.

Project Sponsor and Facility: New York State Canal Corporation (Middle Branch Tioughnioga Creek), Towns of DeRuyter and Cazenovia, Madison County, and Town of Fabius, Onondaga County, N.Y. Applications for surface water withdrawal of up to 4.300 mgd (peak day), consumptive use of up to 4.300 mgd (peak day), and out-of-basin diversion of up to 4.300 mgd (peak day) from Middle Branch Tioughnioga Creek.

Project Sponsor: Seneca Resources Company, LLC. Project Facility: Impoundment 1, receiving groundwater from various sources, Sergeant and Norwich Townships, McKean County, Pa. Application for into-basin diversion from the Ohio River Basin of up to 2.517 mgd (peak day) (Docket No. 20141216).

Commission Initiated Project Approval Modifications

Project Sponsor and Facility: Bucknell University, East Buffalo Township, Union County, Pa. Conforming the grandfathering amount with the forthcoming determination for a groundwater withdrawal up to 0.046 mgd (30-day average) from Well 2 and up to 0.116 mgd (30-day average) from Wells 2 and 3 (Docket No. 20021008).

Project Sponsor and Facility: Manada Golf Club, Inc., East Hanover Township, Dauphin County, Pa. Conforming the grandfathered amount with the forthcoming determination for a withdrawal of up to 0.071 mgd (30-day average) from the 4th Tee Well, up to 0.036 mgd (30-day average) from the 5th Tee Well, and up to 0.036 mgd (30-day average) from the Barn Well (Docket No. 20020614).

Project Sponsor: Pennsylvania Fish & Boat Commission. Project Facility: Pleasant Gap State Fish Hatchery, Benner Township, Centre County, Pa. Conforming the grandfathering amount with the forthcoming determination for a withdrawal of up to 5.056 mgd (30-day average) from Blue and East Springs, up to 0.930 mgd (30-day average) from Hoy and Shugert Springs, and up to 1.000 mgd (30-day average) from Logan Branch (Docket No. 20000601).

Project Applications Tabled

Project Sponsor and Facility: Chester Water Authority, East Nottingham Township, Chester County, Pa. Application for an out-of-basin diversion of up to 60.000 mgd (peak day).

Project Sponsor and Facility: New Holland Borough Authority, New Holland Borough, Lancaster County, Pa. Application for groundwater withdrawal of up to 0.860 mgd (30-day average) from Well 5.

Project Sponsor: Pixelle Specialty Solutions LLC. Project Facility: Spring Grove Mill (Codorus Creek – New Filter Plant Intake), Spring Grove Borough, York County, Pa. Applications for consumptive use of up to 3.650 mgd (peak day) and surface water withdrawal of up to 19.800 mgd (peak day).

Project Sponsor: Pixelle Specialty Solutions LLC. Project Facility: Spring Grove Mill (Codorus Creek – Old Filter Plant Intake), Spring Grove Borough, York County, Pa. Application for surface water withdrawal of up to 6.000 mgd (peak day).

Project Sponsor: Pixelle Specialty Solutions LLC. Project Facility: Spring Grove Mill (unnamed tributary to Codorus Creek – Kessler Pond Intake), Spring Grove Borough, York County, Pa. Application for surface water withdrawal of up to 0.750 mgd (peak day).

Project Sponsor and Facility: Chester Water Authority, East Nottingham Township, Chester County, Pa. Application for an out-of-basin diversion of up to 60.000 mgd (peak day) from the Susquehanna River and Octoraro Reservoir.

AUTHORITY: Pub.L. 91-575, 84 Stat. 1509 et seq., 18 CFR Parts 806, 807, and 808.

Dated: December 10, 2019.

JASON E. OYLER
General Counsel and Secretary to the Commission
[20-01-33]

WATER AND SCIENCE ADMINISTRATION

Water Quality Certification 19-WQC-0015

Kenneth Miller
9160 Quail Run Road
Saint Michaels, Maryland 21663

Add'l. Info: Pursuant to COMAR 26.08.02.10F(3)(c), The Maryland Department of the Environment is providing notice of its issuance of a Water Quality Certification 19-WQC-0015.

Location: 9160 Quail Run Road, Saint Michaels, Maryland, 21663 in Talbot County

The purpose of the project is to provide shoreline stabilization and enhance a tidal marsh to create and enhance aquatic habitat and contribute to improvements in water quality.

Construct 125 linear feet of 6-foot wide low-profile stone marsh edging extending a maximum of 20 feet channelward of the mean high water line (MHWL); and

Construct a 100 linear-foot low-profile stone, sand containment sill; and fill and grade with 20 cubic yards of sand along 100 feet of eroding shoreline and plant with marsh vegetation all extending a maximum of 35 feet channelward of the MHWL.

The WQC and its attachments may be viewed at the following link:
https://mde.maryland.gov/programs/Water/WetlandsandWaterways/Pages/WQC.aspx

Appeal of Final Decision. This Water Quality Certification is a final agency decision. Any person aggrieved by the Department's decision to issue this WQC may appeal such decision in accordance with COMAR 26.08.02.10F(4). A request for appeal shall be filed with the Department within 30 days of publication of the final decision, and specify in writing the reason why the final decision should be reconsidered. A request for appeal shall be submitted to: Secretary of the Environment, Maryland Department of the Environment, 1800 Washington Boulevard, Baltimore, MD 21230. Any request for an appeal does not stay the effectiveness of this WQC. Contact: Megan Spindler at Megan.Spindler@maryland.gov or 410-537-3622.

[20-01-45]

WATER AND SCIENCE ADMINISTRATION

Public Hearing for Water Quality Certification 19-WQC-0017

Ferry Cove Project, LLC c/o Tina Davenport
4324 John Silver Road
Virginia Beach, Virginia 23455

Add'l. Info: Pursuant to COMAR 26.08.02.10F(1)(d), The Maryland Department of the Environment is providing notice of a public hearing for Water Quality Certification 19-WQC-0017.

Location: Tilghman Road, Sherwood, Maryland, 21665 in Talbot County

The purpose of the project is to provide mitigation for 3,716 S.F. of proposed submerged aquatic vegetation (SAV) impacts under Joint Permit Application for the Alteration of Any Tidal Wetland in Maryland number 19-WL-0402.

Mitigation is proposed at a 4:1 ratio by constructing a total of 14,864 s.f. of oyster reefs in the project vicinity. Specifically, 2,024 s.f. of stone proposed surrounding the hatchery structures will be seeded with 250,000 oyster spat. An additional 12,840 s.f. of oyster reef will be created by constructing a 325-foot long by 4-foot wide breakwater made of 4-foot long by 4-foot wide by 3-foot tall metal cages filled with 50-60 mesh bags containing oyster shell extending a maximum of 85 feet channelward of the MHWL. The breakwater system and the remaining 11,540 s.f. area surrounding the breakwaters will be seeded with 1.5 million oyster spat. The 12,840 s.f. oyster reef breakwater system will be constructed at an adjacent property located at 8032 Tilghman Road, Sherwood, Talbot County, Maryland, 21665.

The public hearing announcement and its attachments may be viewed at the following link:
https://mde.maryland.gov/programs/Water/WetlandsandWaterways/AboutWetlands/Pages/publicinformation.aspx.

The purpose of this public notice is to solicit comments from the public about the proposed work and to announce the date of a Maryland Department of the Environment (MDE) public information hearing on the subject application. At this time, no decision has been made as to whether or not authorizations will be issued.

The public information hearing will be held: February 20, 2020 from 5:30 pm to 7:30 pm at the Talbot County Saint Michaels Library, 106 Fremont Street, Saint Michaels, Maryland, 21663.

The MDE public information hearing provides members of the public the opportunity to present views, opinions, and information which will be considered by the MDE in evaluating the permit application. A poster session/display will be available from 5:30 PM to 6:00 PM where project drawings can be reviewed. Agency representatives will also be available to answer questions. From 6:00 PM to 7:30 PM, a brief project presentation will be given by Ferry Cove Project, LLC followed by public testimony. For more information please contact Megan Spindler at Megan.Spindler@maryland.gov or 410-537-3622.

[20-01-38]

DEPARTMENT OF NATURAL RESOURCES

FISHING AND BOATING SERVICES — PUBLIC NOTICE

Partial Opening of Durdin Oyster Bar (Kent County) — Effective 1/6/2020

WHAT THIS NOTICE DOES
The Secretary of the Maryland Department of Natural Resources announces that a portion of Durdin oyster bar (Kent County) is opened to oyster harvest beginning January 6, 2020.

AREA OPENED
Durdin (PSFA 70 (NOB 5-11): Chester River)
All the waters of the Chester River southeast of Durdin Creek enclosed by a line beginning at a point defined by Lat. 39°1.455' N, Long. 76°11.747' W; then running 297° True to a point defined by Lat. 39°1.528' N, Long. 76°11.928' W; then running 329° True to a point defined by Lat. 39°1.619' N, Long. 76°11.999' W; then running 74° True to a point defined by Lat. 39°1.680' N, Long. 76°11.719' W; then running 153° True to a point defined by Lat. 39°1.506' N, Long. 76°11.606' W; then running 245° True to the point of beginning.

PURPOSE OF THIS OPENING
The purpose of this opening is to allow the harvest of market size oysters that have grown from industry plantings of spat-on-shell made in 2016, 2017, and 2018. This opening was requested by the Kent County Oyster Committee.

HARVEST RULES FOR THE DESCRIBED AREA
Harvesters must follow the rules established by the public notices effective September 19, 2019 titled "2019-2020 Commercial Oyster Rules — Effective 9/19/2019" and "2019-2020 Recreational Oyster Rules — Effective 9/19/2019."

WHOM THIS NOTICE AFFECTS
This opening applies to all individuals who catch oysters recreationally or commercially.

EFFECTIVE DATE
This notice is effective at 12:01 a.m. January 6, 2020. The area described is open from January 6, 2020 through and including March 31, 2020.

AUTHORITY
Code of Maryland Regulations (COMAR) 08.02.04.11G

FOR FURTHER INFORMATION CONTACT:
Fishing and Boating Services at 410-260-8302

JEANNIE HADDAWAY-RICCIO
Secretary of Natural Resources

[20-01-27]

FISHING AND BOATING SERVICES — PUBLIC NOTICE

Partial Opening of Hells Delight Oyster Bar (Queen Anne's County) — Effective 12/16/2019

WHAT THIS NOTICE DOES
The Secretary of the Maryland Department of Natural Resources announces that a portion of Hells Delight oyster bar (Queen Anne's County) is opened to oyster harvest beginning December 16, 2019.

AREA OPENED
Hells Delight (PSFA 69 (NOB 5-9): Chester River)
All the waters of the Chester River enclosed by a line beginning at a point defined by Lat. 39°3.964' N, Long. 76°10.754' W; then running 301° True to a point defined by Lat. 39°4.014' N, Long. 76°10.862' W; then running 27° True to a point defined by Lat. 39°4.120' N, Long. 76°10.794' W; then running 116° True to a point defined by Lat. 39°4.070' N, Long. 76°10.660' W; then running 215° True to the point of beginning.

PURPOSE OF THIS OPENING
The purpose of this opening is to allow the harvest of market size oysters that have grown from industry plantings of spat-on-shell made in 2016. This opening was requested by the Queen Anne's County Oyster Committee.

HARVEST RULES FOR THE DESCRIBED AREA
Harvesters must follow the rules established by the public notices effective September 19, 2019 titled "2019-2020 Commercial Oyster Rules — Effective 9/19/2019" and "2019-2020 Recreational Oyster Rules — Effective 9/19/2019."

WHOM THIS NOTICE AFFECTS
This opening applies to all individuals who catch oysters recreationally or commercially.

EFFECTIVE DATE
This notice is effective at 12:01 a.m. December 16, 2019. The area described is open from December 16, 2019 through and including March 31, 2020.

AUTHORITY
Code of Maryland Regulations (COMAR) 08.02.04.11G

FOR FURTHER INFORMATION CONTACT:
Fishing and Boating Services at 410-260-8302

JEANNIE HADDAWAY-RICCIO
Secretary of Natural Resources

[20-01-24]

FISHING AND BOATING SERVICES — PUBLIC NOTICE

Partial Opening of Piney Point Oyster Bar (Queen Anne's County) — Effective 12/16/2019

WHAT THIS NOTICE DOES
The Secretary of the Maryland Department of Natural Resources announces that a portion of Piney Point oyster bar (Queen Anne's County) is opened to oyster harvest beginning December 16, 2019.

AREA OPENED
Piney Point (PSFA 69 (NOB 5-9): Chester River)
All the waters of the Chester River enclosed by a line beginning at a point defined by Lat. 39°2.679' N, Long. 76°11.598' W; then running 280° True to a point defined by Lat. 39°2.701' N, Long. 76°11.752' W; then running 7° True to a point defined by Lat. 39°2.837' N, Long. 76°11.731' W; then running 96° True to a point defined by Lat. 39°2.823' N, Long. 76°11.550' W; then running 195° True to the point of beginning.

PURPOSE OF THIS OPENING
The purpose of this opening is to allow the harvest of market size oysters that have grown from industry plantings of spat-on-shell made in 2016. This opening was requested by the Queen Anne's County Oyster Committee.

HARVEST RULES FOR THE DESCRIBED AREA
Harvesters must follow the rules established by the public notices effective September 19, 2019 titled "2019-2020 Commercial Oyster Rules — Effective 9/19/2019" and "2019-2020 Recreational Oyster Rules — Effective 9/19/2019."

WHOM THIS NOTICE AFFECTS
This opening applies to all individuals who catch oysters recreationally or commercially.

EFFECTIVE DATE
This notice is effective at 12:01 a.m. December 16, 2019. The area described is open from December 16, 2019 through and including March 31, 2020.

AUTHORITY
Code of Maryland Regulations (COMAR) 08.02.04.11G

FOR FURTHER INFORMATION CONTACT:
Fishing and Boating Services at 410-260-8302

JEANNIE HADDAWAY-RICCIO
Secretary of Natural Resources
[20-01-25]

FISHING AND BOATING SERVICES — PUBLIC NOTICE

Closure of Upper Chesapeake Bay to Oyster Harvest — Effective 12/16/2019

WHAT THIS NOTICE DOES
The Secretary of the Maryland Department of Natural Resources announces that, except as provided in the public notices described below, the Chesapeake Bay and its tidal tributaries north of the northernmost spans of the Gov. William Preston Lane Jr. Memorial and the R. Clayton Mitchell Jr. (Kent Narrows) bridges are closed to all oyster harvest. This notice supersedes all notices effective prior to December 16, 2019 affecting oyster harvest areas north of the northernmost spans of the Gov. William Preston Lane Jr. Memorial and the R. Clayton Mitchell Jr. (Kent Narrows) bridges.

EXCEPTIONS TO CLOSED AREA
The areas described in the notices listed below are exceptions to the closed area. Details of the openings are in each notice.
Partial Opening of Swan Point Oyster Bar (Kent County) — Effective 11/25/2019
Partial Opening of Hells Delight Oyster Bar (Queen Anne's County) — Effective 12/16/2019
Partial Opening of Piney Point Oyster Bar (Queen Anne's County) — Effective 12/16/2019
Partial Opening of Durdin Oyster Bar (Kent County) — Effective 1/6/2020

PURPOSE OF THIS CLOSURE
This closure is necessary due to low abundance of oysters, low natural spat set, and potential impacts of persistently low salinity levels. Specific sites previously planted by county oyster committees may be opened in a future notice.

WHOM THIS NOTICE AFFECTS
This closure applies to all individuals who catch oysters recreationally or commercially.

EFFECTIVE DATE
The closure is effective at 12:01 a.m. December 16, 2019. The area is closed until further notice. A new notice will be issued when the area or any previously planted portion of the area is reopened to harvest.

AUTHORITY
Code of Maryland Regulations (COMAR) 08.02.04.11G

FOR FURTHER INFORMATION CONTACT:
Fishing and Boating Services at 410-260-8302

JEANNIE HADDAWAY-RICCIO
Secretary of Natural Resources
[20-01-26]

DEPARTMENT OF STATE POLICE

HANDGUN ROSTER BOARD

Proposed Additions to Handgun Roster and Notice of Right to Object or Petition

The following is a list of handguns that the Handgun Roster Board proposes to add to the official handgun roster. These handguns will be officially placed on the Handgun Roster if no timely objection is received or if all timely objections are dismissed.

Under the Public Safety Article, §5-405, Annotated Code of Maryland and COMAR 29.03.03.13 and .14, any person may object to the placement of any of those handguns on the Handgun Roster. Objections must be filed within 30 days after **January 3, 2020.** In addition, any person may petition for the placement of an additional handgun on the Handgun Roster. Forms for objections or petitions may be obtained from: Rachel Rosenberg, Administrator, Handgun Roster Board, 1201 Reisterstown Road, Baltimore, Maryland 21208 (Phone: 410-653-4247).

Make	Model	Model No.	Caliber	Additional Comments
LWRC International	SMG	SMG45	45 ACP	
Coonan, Inc.	MOT 10	100053005	10 mm	
Daniel Defense, Inc.	DDM4 V7P	02-128-19153	300 BLK	Model number addition
Sturm Ruger	SR1911	6756	10 mm	Model number addition
Taurus S.A. Forjas (Taurus International Inc.)	Judge	Public Defender Polymer (2-441021ODG)	45 LC/410 Gauge	Model number addition
Sturm Ruger	New Model Single Six	0678	22 LR/22 Mag	Model number addition
Glock	17	17M	9 mm	Model number addition
Springfield Armory/Inc.	Range Officer	PI9129L	9 mm	Model and caliber addition
Canik (Century Arms)	TP-9	Elite SC	9 mm, 9X19 mm	Model number addition
CMMG, INC.	MKG BANSHEE	45A691C (300 Series)	45 ACP	Model number addition
Springfield Armory/Inc.	SAINT	ST975556FDE	5.56 NATO, 223 Rem	Model number addition

Make	Model	Model No.	Caliber	Additional Comments
Springfield Armory/Inc.	SAINT	ST975556GRY	5.56 NATO, 223 Rem	Model number addition
Smith & Wesson	M&P 9 Shield M2.0	Performance Center #11869	9 mm	Model number addition
Taurus	G2 S	1-G2S40310	40 S&W	Model and caliber addition
Bond Arms	Roughneck	BARN	9 mm	
Standard Manufacturing Co. LLC	1911 Blue Finish	1911B	45 ACP	Model addition
FN America LLC	FN 15 Pistol	36322	5.56 NATO	
Sig Sauer / Sigarms Inc.	P365 SAS	365-9-SAS-C	9 mm	Model addition
Para-Ordnance	1911 SSP	N/A	38 Super	Caliber addition
Springfield Armory/Inc. (HS Produkt)	Hellcat	HC9319B	9 mm	
Springfield Armory/Inc. (HS Produkt)	Hellcat	HC9319BOSP	9 mm	Model number addition
Browning	1911-380	051956492 (Black Label Medallion Engraved)	380 ACP	Model number addition
Charter Arms/Charco Inc.	Bulldog	Boomer (64429, 74429)	44 Spl	Model number addition
Charter Arms/Charco Inc.	Bulldog	Classic Bulldog (34431)	44 Spl	Model number addition
Charter Arms/Charco Inc.	Bulldog	Bulldog On Duty (74410)	44 Spl	Model number addition
Charter Arms/Charco Inc.	Bulldog	Bulldog	45 LC	Model and caliber addition
Charter Arms/Charco Inc.	Mag Pug	Tiger III (23520)	357 Mag	Model number addition
Charter Arms/Charco Inc.	Mag Pug	Target Magnum (73542, 73560)	357 Mag	Model number addition
Charter Arms/Charco Inc.	Mag Pug	Mag Pug (74120)	41 Mag	Model number addition
Charter Arms/Charco Inc.	Mag Pug	Mag Pug (63520, 73524, 73539)	357 Mag	Model number addition
Charter Arms/Charco Inc.	Mag Pug	Mag Pug On Duty (73510)	357 Mag	Model number addition
Charter Arms/Charco Inc.	Undercover Lite	Undercover Lite (53871, 53870, 53824, 53820, 53823)	38 Spl	Model addition
Charter Arms/Charco Inc.	Undercover Lite	On Duty (53810)	38 Spl	Model number addition
Charter Arms/Charco Inc.	Undercover Lite	Santa Fe Sky (53864)	38 Spl	Model number addition
Charter Arms/Charco Inc.	Undercover Lite	Blue Diamond (53879)	38 Spl	Model number addition
Charter Arms/Charco Inc.	Undercover Lite	Magenta (53869)	38 Spl	Model number addition
Charter Arms/Charco Inc.	Undercover Lite	Earthborn (53863)	38 Spl	Model number addition
Charter Arms/Charco Inc.	Undercover Lite	Rosebud (53859)	38 Spl	Model number addition
Charter Arms/Charco Inc.	Undercover Lite	Chameleon (25387)	38 Spl	Model number addition
Charter Arms/Charco Inc.	Undercover Lite	Lavender Lady (53848, 53841)	38 Spl	Model number addition
Charter Arms/Charco Inc.	Undercover Lite	The Pink Lady (53835, 53830, 53831)	38 Spl	Model number addition
Charter Arms/Charco Inc.	Undercover Lite	Shamrock (53844, 53845)	38 Spl	Model number addition
Charter Arms/Charco Inc.	Undercover	Police Undercover (73840)	38 Spl	Model number addition
Charter Arms/Charco Inc.	Undercover	Tiger II (13825)	38 Spl	Model number addition
Charter Arms/Charco Inc.	Undercover	Gator (23830)	38 Spl	Model number addition
Charter Arms/Charco Inc.	Pit Bull	Pit Bull (64020, 74042)	40 S&W	Model number addition
Charter Arms/Charco Inc.	Pit Bull	Pit Bull (74520)	45 ACP	Model number addition

Make	Model	Model No.	Caliber	Additional Comments
Charter Arms/Charco Inc.	Pit Bull	Pit Bull (79960)	9 mm	Model number addition
Charter Arms/Charco Inc.	Pit Bull	Pit Bull (73802)	380 ACP	Model and caliber addition
Charter Arms/Charco Inc.	Pit Bull	Tiger IV (24520)	45 ACP	Model number addition
Charter Arms/Charco Inc.	Chic Lady	Chic Lady (53899, 53849, 53842)	38 Spl	Model number addition
Charter Arms/Charco Inc.	Chic Lady	Chic Lady, Off Duty (53852)	38 Spl	Model number addition
Charter Arms/Charco Inc.	Chic Lady	Leopard (53889)	38 Spl	Model number addition
Charter Arms/Charco Inc.	Southpaw	93830	38 Spl	Model number addition
Charter Arms/Charco Inc.	Undercover Lite	Red Line (23824)	38 Spl	Model number addition
Charter Arms/Charco Inc.	Undercover Lite	Blue Line (23825)	38 Spl	Model number addition
Zastava Arms (Zastava Arms USA)	ZPAP92	ZP92762	7.62x39 mm	
Grand Power s.r.o. (Global Ordnance LLC)	Q1	8588005808392	9 mm	
Grand Power s.r.o. (Global Ordnance LLC)	Q100	8588005808255	9 mm	
TISAS (LKCI, LTD)	Regent PC45	TISA/LKCIPC45STS	45 ACP	
Triarc Systems	TRI-11	T1374	9 mm	
Brugger & Thomet (Brugger & Thomet USA)	APC9K	BT-36045	9 mm	
Charter Arms/Charco Inc.	Pathfinder	N/A	22 Mag	Caliber addition
Taurus S.A. Forjas (Taurus International Inc.)	G3	1-G3941-10	9 mm	
Remington Arms Co., Inc.	700 (Chassis Pistol)	96815	308 Win	
Bond Arms	Roughneck	BARN	357 Mag/ 38 Spl, 45 ACP	Caliber addition
Colt/Colts Mfg. Co., Inc.	1911 Government Model Competition Series	O1070CCS-BT	45 ACP	Model number addition
Sig Sauer / Sigarms Inc.	P365	365-9-TXR3	9 mm	Model number addition
Smith & Wesson	642	642-2 Airweight	38 Spl+P	Model and caliber addition
Sturm Ruger	GP100	1784 TALO EXCLUSIVE	357 Mag	Model number addition
Sturm Ruger	MARK IV	40167 (22/45 TACTICAL)	22 LR	Model number addition
Smith & Wesson	M&P 45 M2.0	LE 11884	45 ACP	Model number addition
Israel Weapon Industries (IWI US)	Masada 9 ORP	M9ORP10	9 mm	
SAN (SWISS ARMS) (JDI FIREARMS)	SG 553 RP	NMN	7.62x39 mm	
Sig Sauer / Sigarms Inc.	P220	Match Stainless Elite	45 ACP	Model number addition
Sturm Ruger	EC9S	3287	9 mm	Model number addition
Sturm Ruger	EC9S	3295	9 mm	Model number addition
Sturm Ruger	SR1911	6768	9 mm	Model number addition
Sturm Ruger	NEW VAQUERO	5164	357 Mag	Model number addition
Sturm Ruger	NEW MODEL BLACKHAWK	0447	45 LC	Model number addition
Sturm Ruger	NEW MODEL BLACKHAWK	0333	357 Mag/ 9 mm	Model number addition
CMMG, INC.	MKGS BANSHEE	99A172F (300 Series)	9 mm	Model number addition
Taurus S.A. Forjas (Taurus International Inc.)	RAGING HUNTER	2-357081RH	357 Mag / 38 Spl+P	Model and caliber addition
Sig Sauer / Sigarms Inc.	P365	365-9-BXR3-MS	9 mm	Model number addition
Sig Sauer / Sigarms Inc.	P365	365-9-BXR3-MS-MA	9 mm	Model number addition
Springfield Armory/Inc.	1911 Champion Operator	PX9115L	45 ACP	

Make	Model	Model No.	Caliber	Additional Comments
	Lightweight			
Sturm Ruger	LC9S	3260	9 mm	Model number addition
SARSILMAZ (SAR USA)	ST45	ST45ST	45 ACP	
Noveske Rifleworks, LLC	N4-PDW	02000595	300 BLK	
Sturm Ruger	GP100	1782 TALO EXCLUSIVE	357 Mag	Model number addition
CMMG, INC.	MK4	30A81E2 (300 Series)	300 BLK	
Canik (Century Arms)	TP-9	Sub Elite	9 mm	Model number addition
Kimber	Micro 9	Micro 9 Raptor (Collector's Edition)	9 mm	Model number addition
Kimber	Micro 9	Micro 9 Amethyst	9 mm	Model number addition
Kimber	Micro 9	Micro 9 Triari	9 mm	Model number addition
Kimber	EVO-SP	Raptor (Collector's Edition)	9 mm	Model number addition
Kimber	EVO-SP	Select (Stainless), Select (Black)	9 mm	Model number addition
Springfield Armory/Inc.	911	PG9119, PG9119H, PG9119VG, PG9119SVG	9 mm	Model number addition
Smith & Wesson	M&P 9 M2.0	12458 COMPACT	9 mm	Model number addition
Stoeger (Stoeger Industries Inc.)	STR-9	31724, 31725, 31726	9 mm	Model number addition
Sturm Ruger	SR22	3647	22 LR	Model number addition
MAGNUM RESEARCH	DESERT EAGLE	DESERT EAGLE	429 DE	Caliber addition
NIGHTHAWK CUSTOM	Counselor	NMN	9 mm	
KORTH (NIGHTHAWK CUSTOM)	Ranger	NMN	357 Mag	
Glock	17T	Gen 4	9 mm Training (FX or FOF)	

[20-01-37]

DEPARTMENT OF TRANSPORTATION

OFFICE OF MINORITY BUSINESS ENTERPRISE

Subject: Announcement of Calendar Year 2020 Limitation on the Personal Net Worth (PNW) of a Socially and Economically Disadvantaged Individual as It Relates to Certification of a Minority Business Enterprise (MBE)

Add'l. Info.: The Maryland Department of Transportation Office of Minority Business Enterprise (OMBE) gives notice that effective January 1, 2020, the PNW of a disadvantaged owner whose ownership interest in a firm is relied upon for certification in the State's MBE program, may not exceed $1,771,564. This PNW limitation will apply to all MBE certification decisions rendered between January 1, 2020, and December 31, 2020. This action is taken in accordance with State Finance and Procurement Article, §14-301(k)(3), Annotated Code of Maryland.

Contact: Sabrina Bass (410) 865-1240

[20-01-17]

General Notices

Notice of ADA Compliance

The State of Maryland is committed to ensuring that individuals with disabilities are able to fully participate in public meetings. Anyone planning to attend a meeting announced below who wishes to receive auxiliary aids, services, or accommodations is invited to contact the agency representative at least 48 hours in advance, at the telephone number listed in the notice or through Maryland Relay.

DEPARTMENT OF AGING

Subject: Public Meeting
Date and Time: February 3, 2020, 1 — 3 p.m.
Place: Office of Health Care Quality 7120 Samuel Morse Dr., Potomac Rm., 2nd Fl., Columbia, MD
Add'l. Info: Oversight Committee on Quality of Care in Nursing Homes and Assisted Living Facilities.
Contact: Clarissa Hibler (410) 767-1110
[20-01-28]

STATE ANATOMY BOARD

Subject: Public Meeting
Date and Time: January 17, 2020, 2 — 4 p.m.
Place: University of MD, Baltimore School of Medicine Health Science Facility II, 20 Penn St., Rm. 241, Baltimore, MD
Contact: Rita M. Gross (410) 706-3313
[20-01-14]

MARYLAND BICYCLE AND PEDESTRIAN ADVISORY COMMITTEE

Subject: Public Meeting
Date and Time: January 24, 2020, 10 a.m. — 12 p.m.
Place: Wilmington Area Planning Council (Wilmapco), 100 Discovery Blvd., Ste. 800, Newark, DE
Add'l. Info:
http://www.mdot.maryland.gov/newMDOT/Planning/Bike_Walk/MBPAC.html
Contact: Nate Evans (410) 865-1304
[20-01-15]

STATE COLLECTION AGENCY LICENSING BOARD

Subject: Public Meeting
Date and Time: January 13, 2020, 2 — 3 p.m.
Place: 500 N. Calvert St., 3rd Fl. Conf. Rm., Baltimore, MD
Contact: Devki Dave (410) 230-6019
[20-01-19]

GOVERNOR'S OFFICE OF CRIME CONTROL AND PREVENTION

Subject: Public Meeting
Date and Time: January 16, 2020, 1:30 — 3:30 p.m.
Place: Governor's Coordinating Offices, 100 Community Pl., Crownsville, MD
Add'l. Info: Children's Justice Act Committee
Contact: Kelly Gorman (410) 697-9313
[20-01-06]

GOVERNOR'S OFFICE OF CRIME CONTROL AND PREVENTION

Subject: Public Meeting
Date and Time: March 9, 2020, 1 — 3 p.m.
Place: Governor's Coordinating Offices, 100 Community Pl., Crownsville, MD
Add'l. Info: State Advisory Group (SAG) Meeting.
Contact: Jessica Wheeler (410) 697-9342
[20-01-09]

GOVERNOR'S OFFICE OF CRIME CONTROL AND PREVENTION

Subject: Public Meeting
Date and Time: April 16, 2020, 1:30 — 3:30 p.m.
Place: Governor's Coordinating Offices, 100 Community Pl. , Crownsville, MD
Add'l. Info: Children's Justice Act Committee.
Contact: Kelly Gorman (410) 697-9313
[20-01-07]

GOVERNOR'S OFFICE OF CRIME CONTROL AND PREVENTION

Subject: Public Meeting
Date and Time: May 4, 2020, 1 — 3 p.m.
Place: Governor's Coordinating Offices, 100 Community Pl., Crownsville, MD
Add'l. Info: State Advisory Group (SAG) Meeting.
Contact: Jessica Wheeler (410) 697-9342
[20-01-10]

GOVERNOR'S OFFICE OF CRIME CONTROL AND PREVENTION

Subject: Public Meeting
Date and Time: October 15, 2020, 1:30 — 3:30 p.m.
Place: Governor's Coordinating Offices, 100 Community Pl., Crownsville, MD
Add'l. Info: Children's Justice Act Committee.
Contact: Kelly Gorman (410) 697-9313
[20-01-08]

STATE EMS BOARD AND SEMSAC ANNUAL JOINT MEETING

Subject: Public Meeting
Date and Time: January 14, 2020, 10 a.m. — 12 p.m.
Place: 653 W. Pratt St., Ste. 212, Baltimore, MD
Add'l. Info: The State Emergency Medical Services and the Emergency Medical Services Advisory Council meets annually every January. Part of the meeting may include a closed session.
Contact: Leandrea Gilliam (410) 706-4449
[20-01-12]

DEPARTMENT OF THE ENVIRONMENT/AIR AND RADIATION ADMINISTRATION

Subject: Public Hearing on Sulfur Dioxide Air Quality Plan
Date and Time: January 16, 2020, 3 p.m.
Place: Dept. of the Environment, 1800 Washington Blvd., Baltimore, MD
Add'l. Info: The Maryland Department of the Environment (MDE) gives notice of a public hearing and comment period concerning a State Implementation Plan (SIP) revision for air quality. This plan revision addresses the federal requirements for an area that has been designated "nonattainment" for the 1-hour, 75 parts per billion (ppb), 2010 primary national ambient air quality standard (NAAQS) for sulfur dioxide (SO_2) in Maryland. The SO_2 nonattainment area encompasses the portions of Anne Arundel County and Baltimore County, Maryland, within 26.8 kilometers (16.7 miles) of the Herbert A. Wagner Generating Station's Unit 3 stack. This SIP revision, the "State of Maryland 1-Hour SO2 NAAQS State Implementation Plan for the Anne Arundel County and Baltimore County, MD ('Wagner') Nonattainment Area," and the SIP revision's supporting documentation describe the Clean Air Act's (CAA) mandated demonstration of the area's air quality attainment of the 1-hour NAAQS for sulfur dioxide.

A public hearing will be held on January 16, 2020, at the Department of the Environment, 1800 Washington Boulevard, Baltimore, Maryland 21230 — First Floor Conference Room — 3 p.m. The public hearing will be held as required by federal law (Clean Air Act at 42 U.S.C. 7410(a)

and 40 CFR 51.102). Interested persons are invited to attend and express their views. After the Department considers the comments received, and revises the proposal if necessary, all related items will be submitted to the U.S. Environmental Protection Agency for approval.

An electronic copy of the proposed SIP revision is available on the Maryland Department of the Environment's website at https://mde.maryland.gov/programs/Air/AirQualityPlanning/Pages/index.aspx.

Note: the public library systems in Maryland can be used for Internet access to view the document. An electronic copy of the document can also be obtained via email by writing to Molla Sarros at molla.sarros@maryland.gov. Copies of the document can also be viewed at the main office of Maryland Department of the Environment, Air and Radiation Administration, 1800 Washington Boulevard, Baltimore, Maryland 21230. For a hard copy, contact Molla Sarros.

Written comments may be presented at the hearing, faxed to (410) 537-4223, emailed to molla.sarros@maryland.gov, or mailed to Molla Sarros, MDE ARA, 1800 Washington Boulevard, Suite 730, Baltimore, MD, 21230. Comments must be received before 5 p.m. on January 30, 2020.

Anyone needing special accommodations at a public hearing should contact the Department's Fair Practices Office at (410) 537-3152 at least 5 business days in advance of the hearing. TTY users may contact the Department through the Maryland Relay Service at 7-1-1 or 1 (800) 735-2258.

For more information, contact Molla Sarros, Natural Resources Planner, at (410) 537-4180. Toll free in Maryland call 1 (800) 633-6101, ext. 4180, Maryland Department of the Environment, Air and Radiation Administration, 1800 Washington Boulevard, Ste. 730, Baltimore, Maryland 21230.

Contact: Molla Sarros (410) 537-4180

[20-01-41]

HEALTH SERVICES COST REVIEW COMMISSION

Subject: Public Meeting
Date and Time: January 8, 2020, 1 — 4 p.m.
Place: 4160 Patterson Ave., Rm. 100, Baltimore, MD
Contact: LaTonya Hamilton (410) 764-3451

[20-01-03]

MARYLAND INSURANCE ADMINISTRATION

Subject: Public Hearing
Date and Time: February 19, 2020, 9 a.m. — 12 p.m.
Place: Maryland Insurance Administration, 200 St. Paul Pl., 24th Fl., Hearing Rm., Baltimore, MD
Add'l. Info: The Maryland Insurance Administration will conduct a public hearing on specific rate increase requests being made by certain Long-Term Care Insurance carriers operating in Maryland. The hearing will focus on several rate increase requests before the Maryland Insurance Administration. In the individual long-term care market, these include requests from CMFG Life Insurance Company, RiverSource Life Insurance Company, Lincoln Benefit Life Company and New York Life Insurance Company. In the group long-term care market, these include requests from Metropolitan Life Insurance Company. The purpose of the hearing is for insurance company officials to explain their reasons for the rate increases. Interested stakeholders will also have the opportunity to provide comments at the hearing. Prior to the hearing, copies of each company's actuarial memorandum will be posted to the Maryland Insurance Administration's website.

If you plan on attending, please RSVP to Nancy Muehlberger. If you will be dialing into the public hearing, and wish to provide oral testimony, please RSVP to Nancy Muehlberger. Testimony will only be heard via the telephone to those who have RSVP'd in advance of the public hearing. Written comments and RSVPs should be sent to Nancy Muehlberger by February 12, 2020, either by email to longtermcare.mia@maryland.gov or by mail to 200 St. Paul Place, Suite 2700, Baltimore, Md. 21202 or by fax to 410-468-2038.

Any questions regarding this matter should be directed to Nancy Muehlberger, Actuarial Analyst, by February 12, 2020, by email to Nancy.Muehlberger@maryland.gov. For more information on the hearing please see the following link: https://insurance.maryland.gov/Consumer/Pages/Long-Term-Care-Hearing-February-19-2020.aspx
Contact: Adam Zimmerman (410) 468-2048

[20-01-40]

MARYLAND STATE LOTTERY AND GAMING CONTROL COMMISSION

Subject: Public Meeting
Date and Time: January 23, 2020, 10 a.m. — 12 p.m.
Place: Montgomery Business Park, 1800 Washington Blvd., Ste. 330, Baltimore, MD
Contact: Kathy Lingo (410) 230-8790

[20-01-13]

MARYLAND HEALTH CARE COMMISSION

Subject: Public Meeting
Date and Time: January 16, 2020, 1 — 4 p.m.
Place: 4160 Patterson Ave., Rm. 100, Baltimore, MD
Contact: Valerie Wooding (410) 764-3570

[20-01-02]

MARYLAND PRESCRIPTION DRUG AFFORDABILITY BOARD

Subject: Public Meeting
Date and Time: January 13, 2020, 11 a.m. — 1 p.m.
Place: Miller Office Bldg., 4th Fl., Amoss Rm., Annapolis, MD
Add'l. Info: Organizational Meeting
Contact: Dee Stephens (410) 764-3565

[20-01-31]

DEPARTMENT OF NATURAL RESOURCES/FISHING AND BOATING SERVICES

Subject: 2020 Recreational Cobia Fishery — Effective 1/1/2020
Add'l. Info:

WHAT THIS NOTICE DOES:

The Secretary of the Maryland Department of Natural Resources announces that the recreational cobia fishery is closed from 12:01 a.m. January 1, 2020 through 11:59 p.m. May 31, 2020.

WHY THIS IS NECESSARY:

This action is necessary to implement the Atlantic States Marine Fisheries Commission's Interstate Fishery Management Plan for Cobia.

WHOM THIS NOTICE AFFECTS:

This applies to all individuals who catch cobia recreationally.

EFFECTIVE DATE:

The effective date is 12:01 a.m. January 1, 2020. In order to implement the Atlantic States Marine Fisheries Commission's Interstate Fishery Management Plan for Cobia, the Department will establish the season, catch limit, and minimum size for

the recreational cobia fishery for the remainder of 2020 in a later notice.

AUTHORITY:
COMAR 08.02.05.17A and C.

Jeannie Haddaway-Riccio
Secretary of Natural Resources
Contact: Tamara O'Connell (410) 507-0779

[20-01-22]

DEPARTMENT OF NATURAL RESOURCES/FISHING AND BOATING SERVICES

Subject: Public Notice — 2020 Summer Flounder Fishery — Effective 1/1/2020
Add'l. Info:
WHAT THIS NOTICE DOES:
The Secretary of the Maryland Department of Natural Resources announces the season, catch limit, and minimum size for the 2020 summer flounder fishery.

SEASON:
The season is open January 1, 2020 through December 31, 2020.

RECREATIONAL MINIMUM SIZE AND CATCH LIMIT:
•16 ½ inches
•4 fish/person/day

COMMERCIAL MINIMUM SIZE:
•Hook and Line: 16 ½ inches.
•Gear other than Hook and Line: 14 inches.

WHY THIS IS NECESSARY:
This action is necessary to implement the Atlantic States Marine Fisheries Commission's Summer Flounder, Scup, and Black Sea Bass Fishery Management Plan.

WHOM THIS NOTICE AFFECTS:
This applies to all individuals who catch summer flounder recreationally or commercially.

EFFECTIVE TIME AND DATE:
This notice is effective at 12:01 a.m. January 1, 2020.

AUTHORITY:
COMAR 08.02.05.12F.

Jeannie Haddaway-Riccio
Secretary of Natural Resources

Contact: Tamara O'Connell (410) 507-0779

[20-01-42]

DEPARTMENT OF NATURAL RESOURCES/FISHING AND BOATING SERVICES

Subject: Public Notice — 2020 Recreational Black Sea Bass Fishery — Effective 1/1/2020
Add'l. Info:
WHAT THIS NOTICE DOES:
The Secretary of the Maryland Department of Natural Resources announces the recreational season, catch limit, and minimum size for black sea bass. Effective 12:01 a.m. January 1, 2020:
•The season is open May 15, 2020 through December 31, 2020. It is closed all other dates.
•Anglers may keep up to 15 black sea bass per person per day.
•The minimum size is 12.5 inches.

WHY THIS IS NECESSARY:
This action is necessary to implement the Atlantic States Marine Fisheries Commission's Summer Flounder, Scup, and Black Sea Bass Fishery Management Plan.

WHOM THIS NOTICE AFFECTS:
This applies to all individuals who catch black sea bass recreationally.

AUTHORITY:
COMAR 08.02.05.21A and F.

Jeannie Haddaway-Riccio
Secretary of Natural Resources
Contact: Tamara O'Connell (410) 507-0779

[20-01-43]

BOARD OF OCCUPATIONAL THERAPY PRACTICE

Subject: Public Meeting
Date and Time: January 17, 2020, 9 a.m. — 12 p.m.
Place: Via Teleconference, MD
Add'l. Info: Health Occupations Article, Title 10, Annotated Code of Maryland, and COMAR 10.46 amendments, additions, and revisions, including fee changes, may be discussed/voted on. Budget information may also be discussed. It may be necessary to go into executive session. Sign language interpreters and/or appropriate accommodations for qualified individuals with disabilities will be provided upon request. Please call 1-800-735-2255. The meeting will take place by teleconference. Please call the office to confirm.
Contact: Lauren Murray (410) 402-8556

[20-01-23]

STATE ADVISORY COUNCIL ON QUALITY CARE AT THE END OF LIFE

Subject: Public Meeting
Date and Time: January 24, 2020, 10 a.m. — 12 p.m.
Place: Office of Health Care Quality, 7120 Samuel Morse Dr., 2nd Fl., Potomac Conf. Rm., Columbia, MD
Add'l. Info: The public is welcome.
Contact: Paul Ballard (410) 767-6918

[20-01-05]

RACING COMMISSION

Subject: Public Meeting
Date and Time: January 23, 2020, 12:30 — 1 p.m.
Place: Laurel Park, Laurel, MD
Contact: J. Michael Hopkins (410) 296-9682

[20-01-29]

MARYLAND DEPARTMENT OF TRANSPORTATION/OFFICE OF MINORITY BUSINESS ENTERPRISE

Subject: Public Meeting
Dates and Times: January 22, 2020, 8:30 a.m. — 5 p.m.; Additional Date: February 5, 2020
Place: Maryland Dept. of Transportation 7201 Corporate Center Dr., Hanover, MD
Contact: Sabrina Bass (410) 865-1240

[20-01-18]

DEPARTMENT OF VETERANS AFFAIRS/MARYLAND VETERANS COMMISSION

Subject: Public Meeting
Date and Time: January 27, 2020, 10:30 a.m. — 1 p.m.
Place: 219 29th Division St., Baltimore, MD
Contact: Denise Nooe (410) 260-3840

[20-01-20]

MARYLAND COLLEGE COLLABORATION FOR STUDENT VETERANS COMMISSION

Subject: Public Meeting
Date and Time: February 11, 2020, 11 a.m. — 1 p.m.
Place: 1420 N. Charles St., Baltimore, MD
Contact: Denise Nooe (410) 260-3840

[20-01-21]

BOARD OF WELL DRILLERS

Subject: Public Meeting
Date and Time: January 22, 2020, 9 a.m. — 1 p.m.
Place: 1800 Washington Blvd., Baltimore, MD
Add'l. Info: A portion of this meeting may be held in closed session.
Contact: Elaine Nolen (410) 537-4466

[20-01-01]

WORKERS' COMPENSATION COMMISSION

Subject: Public Meeting on Regulations
Date and Time: January 23, 2020, 9:30 — 11:30 a.m.
Place: 10 E. Baltimore St., Baltimore, MD
Add'l. Info: Portions of this meeting may be held in closed session.
Contact: Amy Lackington (410) 864-5300

[20-01-11]

DIVISION OF WORKFORCE DEVELOPMENT AND ADULT LEARNING/MARYLAND APPRENTICESHIP AND TRAINING COUNCIL

Subject: Public Notice
Add'l. Info: Effective December 12, 2019, the Maryland Apprenticeship and Training Council cancelled and deregistered the defunct apprenticeship programs of Concordia Lutheran Church and Child Care Center and James Busick Master Electrician, Inc.
Contact: Christopher D. MacLarion (410) 767-2246

[20-01-30]

DIVISION OF WORKFORCE DEVELOPMENT AND ADULT LEARNING/MARYLAND APPRENTICESHIP AND TRAINING COUNCIL

Subject: Public Meeting
Date and Time: January 14, 2020, 9 a.m. — 12 p.m.
Place: Independent Electrical Contractors, Inc. (I.E.C.), Chesapeake Chapter, 8751 Freestate Dr., Ste. 250, Laurel, MD
Add'l. Info: The Apprenticeship and Training Council will consider the approval and registration of new apprenticeship programs, revisions to presently approved apprenticeship programs and other business which may come before the Council.
Contact: Christopher D. MacLarion (410) 767-2246

[20-01-39]

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02 Division of Reimbursements
03 Health Statistics
04 Fiscal
05 Freestanding Ambulatory Care Facilities
06 Diseases
07 Hospitals
08 Health Facilities Grants

Part 2

09 Medical Care Programs

Part 3

10 Laboratories
11 Maternal and Child Health
12 Adult Health
13 Drugs
14 Cancer Control
15 Food
16 Housing
17 Swimming Pools and Spas
18 Human Immunodeficiency Virus (HIV) Infection and Acquired Immunodeficiency Syndrome (AIDS)
19 Dangerous Devices and Substances
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36 Board of Examiners of Psychologists

Part 5

37 Health Services Cost Review Commission
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40 Board of Podiatric Medical Examiners
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42 Board of Social Work Examiners
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Maryland Register

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The Maryland Register is a biweekly publication containing proposed, emergency, and final administrative regulations as well as other State government information. The Register serves as the temporary supplement to the Code of Maryland Regulations (COMAR). Any change to the text of regulations published in COMAR, whether by adoption, amendment, repeal, or emergency action, must first be published in the Register.

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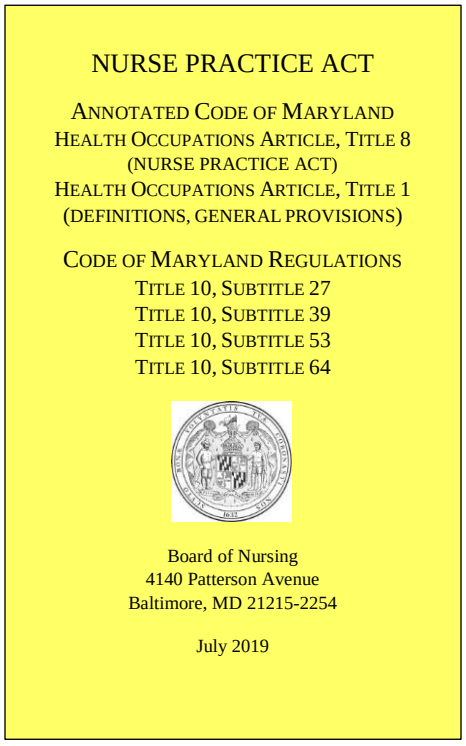
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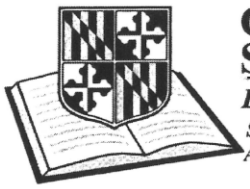
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